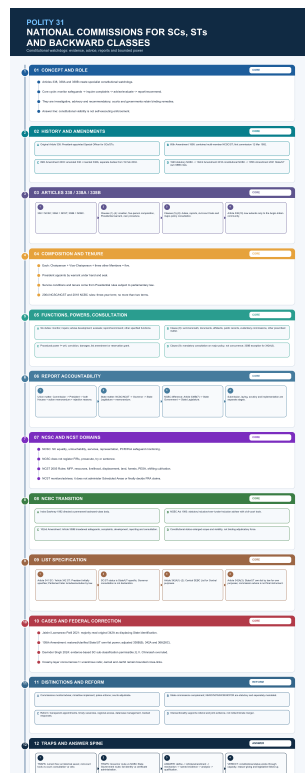


COMPLETE LEARNING SESSION

Polity Topic 31 - National Commissions for SCs, STs and Backward Classes

Complete Learning Session



Topic map: history -> constitutional design -> powers -> list routes -> cases -> reform.

Learning Session Contents

Major learning parts and meaningful subtopics are listed in document order. Page numbers are generated from the final PDF layout; PDF bookmarks mirror the same hierarchy.

Polity Topic 31 - National Commissions for SCs, STs and Backward Classes	6
SOURCE AND STATUS CONTROL	6
SOURCE LIMITS	6
BASIC LEARNING SESSION	6
SESSION 1 - WHY SPECIALISED CONSTITUTIONAL COMMISSIONS EXIST	6
SESSION 2 - CONSTITUTIONAL HISTORY: SPECIAL OFFICER TO THREE COMMISSIONS	8
SESSION 3 - ARTICLES 338, 338A AND 338B: COMMON INSTITUTIONAL SKELETON	11
SESSION 4 - THE SIX COMMON DUTIES: FROM SAFEGUARD TO RECOMMENDATION	13
SESSION 5 - CIVIL-COURT POWERS: PROCEDURAL TOOLS, NOT ADJUDICATION	14
SESSION 6 - REPORTS, ACTION MEMORANDA AND LEGISLATIVE ACCOUNTABILITY	17
SESSION 7 - MAJOR-POLICY CONSULTATION: MANDATORY HEARING, NO VETO	19
SESSION 8 - NCSC: ARTICLE 338 AND THE SCHEDULED-CASTE SAFEGUARD DOMAIN	20
SESSION 9 - NCST: ARTICLE 338A AND TRIBAL LAND, FOREST AND SELF-GOVERNMENT	22
SESSION 10 - NCBC: 1993 STATUTORY ORIGIN TO ARTICLE 338B	25
SESSION 11 - ARTICLES 341 AND 342: SPECIFYING SCHEDULED CASTES AND TRIBES	27
SESSION 12 - ARTICLE 342A AND ARTICLE 366(26C): CENTRAL AND STATE SEBC LISTS	29
SESSION 13 - AMENDMENTS AND CASES: IDENTIFICATION, RESERVATION AND DISTRIBUTION	30
SESSION 14 - NCSC, NCST AND NCBC: SAME ENGINE, DIFFERENT TERRAIN	33
SESSION 15 - INSTITUTIONAL FIREWALLS: WHO DOES WHAT	34
SESSION 16 - CONSTITUTIONAL AND STATUTORY BODIES: STATUS WITHOUT MYTH	35
SESSION 17 - INDEPENDENCE, ACCESS, DATA AND FOLLOW-UP	37
REFORM AGENDA - PROPOSALS, NOT CURRENT LAW	39
SESSION 18 - REFORM WITHOUT CREATING PARALLEL COURTS	40
ANSWER-WRITING ARCHITECTURE	41
SESSION 19 - EVIDENCE CONTROL AND INTEGRATED ANSWER SPINE	43
BASIC MCQS / REMEDIATION	45
MCQ 1. Each of the present NCSC, NCST and NCBC consists of:	45
MCQ 2. The first constitutional combined National Commission for Scheduled Castes and Scheduled Tribes was constituted on:	45

MCQ 3. The 89th Amendment principally:	45
MCQ 4. The constitutional NCBC architecture under the 102nd Amendment commenced on:	46
MCQ 5. Under the service-and-tenure rules governing the three commissions, members ordinarily hold office for:	46
MCQ 6. Article 338(10), after the 102nd Amendment, extends the Scheduled-Caste reference to:	46
MCQ 7. Which is one of the President-specified NCST functions under the 2005 Rules?	46
MCQ 8. Under Article 338B(7), a report concerning a State matter is forwarded to the:	47
MCQ 9. Systemic investigation and monitoring of safeguards appears in:	47
MCQ 10. Inquiry into a specific complaint of deprivation is authorised by:	47
MCQ 11. Which is an exact civil-court power of the commissions?	47
MCQ 12. Civil-court powers do not authorise a commission to:	48
MCQ 13. The duty to consult a commission on major policy matters is best understood as:	48
MCQ 14. The 105th Amendment added to Article 338B(9):	48
MCQ 15. Under Article 341(1), initial specification of Scheduled Castes for a State is made by the:	48
MCQ 16. After an SC or ST list has been specified, inclusion or exclusion is made by:	49
MCQ 17. Article 342 concerns:	49
MCQ 18. The 2024 UPSC proposition that a community declared ST in one State need not be ST in another is:	49
MCQ 19. After the 105th Amendment, the Central List of SEBCs is governed principally by:	49
MCQ 20. A State or Union territory may prepare and maintain its own SEBC list for its own purposes under:	50
MCQ 21. Article 366(26C) functions as:	50
MCQ 22. The pre-2018 statutory NCBC was created under the:	50
MCQ 23. The central institutional direction in Indra Sawhney (1992) relevant here was to:	50
MCQ 24. The 102nd Amendment did NOT:	51
MCQ 25. The majority in Jaishri Laxmanrao Patil (2021) interpreted the original 102nd-Amendment scheme as:	51
MCQ 26. The constitutional purpose of the 105th Amendment was principally to:	51
MCQ 27. State of Punjab v Davinder Singh (2024) held that:	51
MCQ 28. Which statement correctly distinguishes related cases?	52
MCQ 29. NCSC's role regarding offences under the PCR and SC/ST PoA framework is best described as:	52
MCQ 30. NCST's relationship with PESA and forest-rights administration is:	52
MCQ 31. Which comparison is correct?	52
MCQ 32. Which reform best respects the commissions' constitutional design?	53
PYQS AND ANSWER PRACTICE	53
Audited PYQ routing and key discipline	53

Verified PYQ 1 - UPSC GS-II 2018, Q2 - 10 marks, 150 words	53
Verified PYQ 2 - UPSC GS-II 2018, Q16 - 15 marks, 250 words	54
Verified PYQ 3 - UPSC GS-II 2020, Q15 - 15 marks, 250 words	54
Verified PYQ 4 - UPSC GS-II 2022, Q5 - 10 marks, 150 words	55
Verified PYQ 5 - UPSC Prelims 2023, Q35	55
Verified PYQ 6 - UPSC Prelims 2024, Q84	55
ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS	55
Original Mains 1 - 10 marks, 150 words	55
Original Mains 2 - 10 marks, 150 words	56
Original Mains 3 - 15 marks, 250 words	56
Original Mains 4 - 15 marks, 250 words	56
Original Mains 5 - 20 marks, 250 words	57
Original Mains 6 - 20 marks, 250 words	57
OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER	58
ADVANCED UNIT 1 - CONSTITUTIONALISATION VERSUS CAPACITY	58
ADVANCED UNIT 2 - SUB-CLASSIFICATION, CREAMY LAYER AND CASE BOUNDARIES	59
ADVANCED UNIT 3 - COORDINATED SPECIALISATION AND INTERSECTIONAL ACCESS	59
ADVANCED UNIT 4 - DATA, REPORTING AND DELIBERATIVE SANCTION	60
CONSOLIDATED REGISTER NOTES	61
Constitutional identity and common design	61
Evolution rail	61
Clause map for Articles 338, 338A and 338B	61
Six duties	61
Civil-court evidence toolkit	62
Reporting and consultation	62
Commission-specific domains	62
NCBC before and after 2018	62
List specification	62
Amendment and judgment control	63
Institutional distinctions	63
Independence, access and reform	63
Prelims traps	63

Mains answer spine 64

Complete topic ASCII master flow diagram 64

Polity Topic 31 - National Commissions for SCs, STs and Backward Classes

Control date: 8 September 2026 (Asia/Kolkata) **Evidence labels:** [FACT] constitutional/statutory/judicial/official or audited local source; [ANALYSIS] reasoned exam use; [CURRENT] date-sensitive official position; [LIMIT] qualification.

SOURCE AND STATUS CONTROL

1. Canonical Markdown: Basic/Core owner, optional Advanced owner and complete-topic owner for Topic 31.
2. OCR books: local *Courseware on Indian Polity* by M. Laxmikanth, OCR pages 878-891, and *Indian Polity* by M. Laxmikanth, OCR pages 905-920.
3. Official text: Constitution; 65th, 89th, 102nd and 105th Amendment Acts; NCSC/NCST/NCBC service-and-tenure rules; NCST 2005 Specification of Other Functions Rules; official mandate/report material; NCBC Act, 1993 and Repeal Act, 2018.
4. Judicial control: *Indra Sawhney* (1992), *Jarnail Singh*, *Jaishri Laxmanrao Patil* (2021), *State of Punjab v Davinder Singh* (2024), with *Janhit Abhiyan* only as an EWS cross-link.
5. Qdrant was not required.

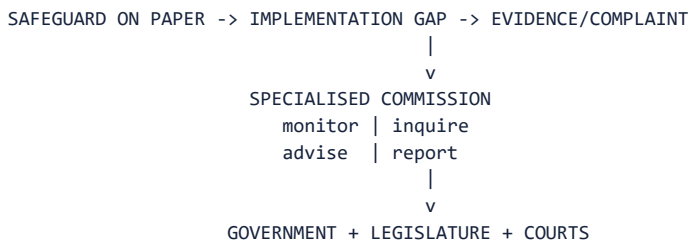
SOURCE LIMITS

- Current chairpersons, member rosters, vacancy counts, complaint backlogs and disposal totals are omitted because they are volatile.
- The live NCSC functions page still reproduces pre-102nd clause (10) wording; the amended Constitution controls, so Article 338(10) is stated only with the Anglo-Indian extension.
- The 2023 Prelims item is retained without an official answer letter because the final official key is not held locally.
- Detailed reservation percentages, certificate procedure and scheme administration remain outside commission power and are used only as bounded cross-links.

BASIC LEARNING SESSION

SESSION 1 - WHY SPECIALISED CONSTITUTIONAL COMMISSIONS EXIST

VISUAL FIRST



DEFINITION / WHAT THIS IS CALLED

A constitutional safeguard commission is a specialised, permanent accountability body created by the Constitution to monitor protections, investigate deprivation and place recommendations before public authorities.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Articles 338, 338A and 338B convert group-specific safeguards from promises on paper into a continuing cycle of monitoring, complaint inquiry, advice and public reporting.

MUST-WRITE KEYWORDS

substantive equality | safeguards | monitoring | complaint inquiry | recommendation | legislative accountability

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Specialised commissions close the information and accountability gap between legal safeguards and lived exclusion.
- **Named evidence:** Part XVI and Articles 338, 338A and 338B create NCSC, NCST and NCBC for distinct protected groups.
- **Analysis:** A dedicated body can aggregate individual complaints into systemic findings and connect policy design with implementation evidence.
- **Qualification:** It cannot replace the executive, legislature or courts, and its recommendations are not self-executing.

EVIDENCE AND EXPLANATION

[FACT] Part XVI contains special provisions relating to certain classes. Articles 338, 338A and 338B create specialised constitutional commissions for Scheduled Castes, Scheduled Tribes and socially and educationally backward classes.

[ANALYSIS] A safeguard may fail in at least four ways: a rule may be absent, an existing rule may be poorly implemented, an individual complaint may be ignored, or development policy may reproduce structural disadvantage. The commissions are designed to observe all four.

[LIMIT] Their existence does not guarantee enforcement. Their strongest constitutional levers are investigation, compulsory evidence-gathering, consultation, reasoned reporting and legislative visibility.

Visual 2 - Four failures and four institutional responses

Safeguard failure	Commission response	Constitutional anchor
rule or protection not implemented	investigate and monitor	clause (5)(a)
specific deprivation	inquire into complaint	clause (5)(b)
exclusion in development design	participate, advise and evaluate	clause (5)(c)
repeated systemic failure	report and recommend	clauses (5)(d)-(e), (6)-(7)

Visual 3 - Rights-to-accountability chain



Caption: The constitutional design converts implementation evidence into an answerable public record.

Visual 4 - Status is not sanction

Attribute	What constitutional status gives	What it does not automatically give
entrenchment	existence cannot be removed by ordinary executive action	immunity from constitutional amendment
visibility	report-and-memorandum route	automatic acceptance
inquiry	civil-court evidentiary tools	criminal investigation or punishment
consultation	mandatory institutional hearing on major policy	veto over policy
recommendation	expert, public and constitutionally recognised advice	decree or executable order

PRELIMS TRAP

Constitutional status does not make a commission a court, ministry or reservation-granting authority.

MAINS USE

Use this session to introduce answers on the need, value and limits of specialised commissions.

RECAP

The commissions are constitutional watchdogs: they investigate, advise and report; competent authorities enforce.

SESSION 2 - CONSTITUTIONAL HISTORY: SPECIAL OFFICER TO THREE COMMISSIONS

VISUAL FIRST

ORIGINAL ART 338	65TH (1990/1992)	89TH (2003/2004)
Special Officer	---> combined NCSC/ST	---> NCSC Art 338 + NCST Art 338A

INDRA SAWHNEY 1992 -> NCBC ACT 1993 -> 102ND (2018) Art 338B
|
105TH (2021): State/UT own SEBC lists

DEFINITION / WHAT THIS IS CALLED

The institutional history is a sequence of constitutional replacement, specialisation and federal clarification, not a single founding event.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The history moves from one reporting officer to a combined commission, then to group-specific bodies, while NCBC travelled separately from a 1993 statute to Article 338B in 2018.

MUST-WRITE KEYWORDS

Special Officer | 65th Amendment | 89th Amendment | statutory NCBC | 102nd Amendment | 105th Amendment

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Institutional specialisation followed recognition that SC, ST and SEBC disadvantages require different expertise.
- **Named evidence:** The 65th Amendment replaced the Special Officer with a combined commission; the 89th inserted Article 338A; the 102nd inserted Article 338B.
- **Analysis:** The constitutional design retained a common accountability engine while separating the social and administrative terrain.
- **Qualification:** Act year, assent, commencement and operational constitution of a body must not be treated as the same date.

EVIDENCE AND EXPLANATION

[FACT] Original Article 338 provided for a **Special Officer for Scheduled Castes and Scheduled Tribes**, appointed by the President, to investigate safeguards and report.

[FACT] A non-statutory multi-member commission was created by executive resolution in 1978 and renamed in 1987, while the constitutional Special Officer architecture continued.

[FACT] The Constitution (Sixty-fifth Amendment) Act, 1990 substituted a high-level multi-member **National Commission for Scheduled Castes and Scheduled Tribes**. The first constitutional commission under the amended Article was constituted on **12 March 1992**.

[FACT] The Constitution (Eighty-ninth Amendment) Act, 2003 amended Article 338 and inserted Article 338A. The separate NCSC and NCST became operational on **19 February 2004**.

[FACT] *Indra Sawhney (1992)* directed a permanent body for backward-class inclusion and over/under-inclusion complaints. Parliament created the statutory NCBC through the **NCBC Act, 1993**.

[FACT] The Constitution (One Hundred and Second Amendment) Act, 2018 inserted Article 338B, Article 342A and Article 366(26C). It received assent on **11 August 2018** and commenced on **15 August 2018**; the 1993 Act was repealed.

[FACT] The 105th Amendment received assent on **18 August 2021**, was gazetted on 19 August and commenced by notification on **15 September 2021**.

Visual 5 - Controlled evolution timeline

1950 Special Officer Article 338	12 Mar 1992 combined NCSCST 65th Amendment	19 Feb 2004 NCSC + NCST 89th Amendment	
1992 judgment ----> constitutional NCBC	1993 statute 15 Aug Indra Sawhney (1992) ----> statutory NCBC		102nd Amendment
5 May 2021 Maratha reading of Article 342A	15 Sep 2021 105th Amendment operational: State/UT own-list power explicit		

Caption: Enactment, assent, notification and operational date are not interchangeable.

Visual 6 - Amendment date discipline

Change	Act/assent date	Operational control	Exam-safe statement
combined constitutional SC/ST commission	65th Amendment Act, 1990	first commission constituted 12 March 1992	do not say "operational in 1990"
NCSC-NCST separation	89th Amendment Act, 28 September 2003	19 February 2004	Act year and institutional start differ
constitutional NCBC	102nd Amendment assent 11 August 2018	15 August 2018	Article 338B commenced after notified date
State SEBC-list restoration	105th Amendment assent 18 August 2021	15 September 2021	do not use assent as commencement

Visual 7 - Why specialisation occurred

Combined design problem	Institutional response	Analytical effect
SC and ST safeguards overlap but contexts differ	separate Articles 338 and 338A	deeper subject expertise
tribal land, forest and self-government issues require distinct focus	2005 NCST functions	domain-sensitive monitoring
backward-class inclusion disputes required permanent scrutiny	1993 NCBC	regular inclusion/exclusion advice
broader SEBC safeguards needed constitutional visibility	Article 338B	complaints, development and reporting beyond list advice

PRELIMS TRAP

The combined body first operated in 1992, separate NCSC/NCST in 2004, and constitutional NCBC from 15 August 2018.

MAINS USE

Use the chronology to show why constitutionalisation and specialisation occurred.

RECAP

Officer -> combined NCSC/ST -> separate NCSC and NCST; statutory NCBC -> constitutional NCBC.

SESSION 3 - ARTICLES 338, 338A AND 338B: COMMON INSTITUTIONAL SKELETON

VISUAL FIRST

Clause	Shared design
(1)-(4)	body, composition, appointment, procedure
(5)	duties
(6)-(7)	Union and State reporting
(8)	civil-court evidence powers
(9)	major-policy consultation

DEFINITION / WHAT THIS IS CALLED

The three Articles use a near-parallel nine-clause architecture, adapted respectively to SCs, STs and socially and educationally backward classes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

NCSC, NCST and NCBC share constitutional machinery but not an interchangeable constituency or policy domain.

MUST-WRITE KEYWORDS

Article 338 | Article 338A | Article 338B | five-member commission | presidential warrant | own procedure

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** A common constitutional template gives institutional parity without erasing group-specific mandates.
- **Named evidence:** Each Article creates a Chairperson, Vice-Chairperson and three other Members appointed by Presidential warrant and permits the body to regulate its procedure.
- **Analysis:** The parallel clauses make comparison easy while allowing specialised evidence, complaints and advice.
- **Qualification:** Service conditions and tenure are supplied by rules subject to parliamentary law, not fully written in the Articles.

EVIDENCE AND EXPLANATION

[FACT] Each current commission consists of a **Chairperson, Vice-Chairperson and three other Members**.

[FACT] The President appoints them by warrant under hand and seal.

[FACT] Subject to parliamentary law, their conditions of service and tenure are determined by presidential rules. The three-year term found in governing rules is not itself written into the constitutional Articles.

[FACT] Each commission may regulate its own procedure.

Visual 8 - Shared nine-clause skeleton

Clause	Common institutional idea
(1)	creates and names the commission
(2)	Chairperson + Vice-Chairperson + three Members; service/tenure by rule
(3)	presidential appointment by warrant
(4)	power to regulate procedure
(5)	six duties
(6)	Union-related report laid before Parliament with memorandum
(7)	State-related report and State-legislature accountability
(8)	civil-court powers during investigation/inquiry
(9)	consultation on major policy matters

Visual 9 - Constitution, rules and procedure

CONSTITUTION

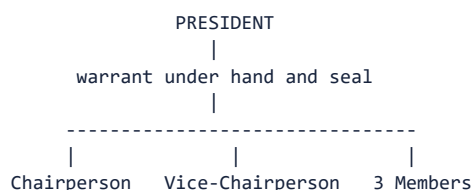
existence + size + appointment + duties + powers + reporting

PRESIDENTIAL RULES, SUBJECT TO PARLIAMENTARY LAW
service conditions + tenure + specified functions

COMMISSION'S OWN PROCEDURE
complaint processing + hearings + internal workflow

Caption: Do not attribute every operational detail to the Constitution itself.

Visual 10 - Current composition memory card



TOTAL = 5

Visual 11 - Historical composition contrast

Stage	Composition	Trap control
original Article 338	one Special Officer	not a commission
65th-Amendment combined body	Chairperson + Vice-Chairperson + five other Members	historical body had seven
current NCSC/NCST/NCBC	Chairperson + Vice-Chairperson + three other Members	each current body has five

PRELIMS TRAP

The present five-person design differs from the seven-person combined commission created by the 65th Amendment.

MAINS USE

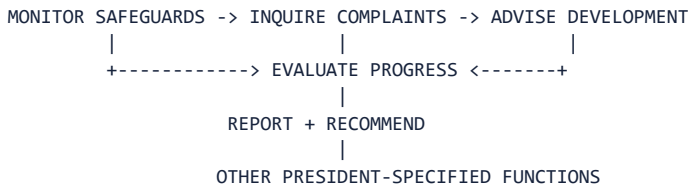
Use the clause map for a precise comparison paragraph.

RECAP

Same constitutional engine; different protected group and policy terrain.

SESSION 4 - THE SIX COMMON DUTIES: FROM SAFEGUARD TO RECOMMENDATION

VISUAL FIRST



DEFINITION / WHAT THIS IS CALLED

Clause (5) gives each commission a six-part mandate covering systemic monitoring, individual complaints, development advice, evaluation, reporting and other specified functions.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The commissions work both ex ante, through consultation and planning advice, and ex post, through monitoring, complaint inquiry and reports.

MUST-WRITE KEYWORDS

investigate | monitor | specific complaint | participate and advise | evaluate | annual and special report

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** The constitutional mandate joins rights protection with development accountability.
- **Named evidence:** Clause (5)(a)-(f) repeats the six-duty structure across Articles 338, 338A and 338B.
- **Analysis:** This lets a commission move from one deprivation case to a wider diagnosis of policy or implementation failure.
- **Qualification:** Participation in planning does not transfer programme design, budgeting or execution from the responsible ministry or State.

EVIDENCE AND EXPLANATION

[FACT] Clause (5) in each Article contains the same functional architecture, adapted to the relevant group.

Visual 12 - Six-duty wheel



Visual 13 - Function-to-evidence matrix

Duty	Typical evidence	Output
investigate/monitor safeguards	laws, rules, files, implementation data	systemic finding
inquire into complaint	parties, records, affidavits, hearing	factual recommendation
participate and advise	draft policy, programme design, consultation	policy advice
evaluate progress	outcome data, field visits, studies	progress assessment
report	annual/special synthesis	President + legislature route
other specified functions	presidential rule	domain-specific task

[ANALYSIS] "Participate and advise" gives the commissions an ex ante role, while complaint inquiry and monitoring are ex post. A good Mains answer should show both.

[LIMIT] Participation does not mean that the commission prepares or executes the government's development plan.

Visual 14 - Ex ante and ex post roles

Time	Role	Example
before policy	consultation and development advice	proposed major safeguard policy
during implementation	monitoring and evaluation	application of reservation or welfare safeguards
after alleged harm	complaint inquiry	denial of a protected benefit
after recurring pattern	special/annual report	systemic recommendation and reasons for non-acceptance

PRELIMS TRAP

Complaint inquiry under clause (5)(b) is distinct from broad safeguard monitoring under clause (5)(a).

MAINS USE

Use the ex ante/ex post distinction to avoid merely listing functions.

RECAP

Monitor, inquire, advise, evaluate, report/recommend, and perform specified additional functions.

SESSION 5 - CIVIL-COURT POWERS: PROCEDURAL TOOLS, NOT ADJUDICATION

VISUAL FIRST

Can do during inquiry	Cannot do merely under clause (8)
summon and examine on oath	convict or sentence
compel documents and affidavits	issue constitutional writs
requisition public records	award executable damages
issue evidentiary commissions	amend a constitutional list

DEFINITION / WHAT THIS IS CALLED

Civil-court powers are enumerated evidence-gathering powers available only while investigating safeguards or inquiring into complaints.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Clause (8) strengthens fact-finding, not final adjudication: court-like procedure does not create court-like remedies.

MUST-WRITE KEYWORDS

summons | oath | discovery | affidavits | public record | evidentiary commission | procedural power

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Compulsory process prevents a constitutional inquiry from depending entirely on voluntary cooperation.
- **Named evidence:** Articles 338(8), 338A(8) and 338B(8) enumerate six categories of civil-court power.
- **Analysis:** Reliable evidence improves recommendations, reports and administrative correction.
- **Qualification:** The clauses confer no general power to punish contempt, grant damages, invalidate law or finally determine legal rights.

EVIDENCE AND EXPLANATION

[FACT] While investigating a clause (5)(a) matter or inquiring into a clause (5)(b) complaint, each commission has all the powers of a civil court trying a suit in specified evidentiary matters.

[FACT] The enumerated powers are:

1. summoning and enforcing attendance of any person from any part of India and examining that person on oath;
2. requiring discovery and production of documents;
3. receiving evidence on affidavits;
4. requisitioning a public record or copy from a court or office;
5. issuing commissions for examination of witnesses and documents; and
6. any other matter the President may by rule determine.

Visual 15 - Civil-court toolkit

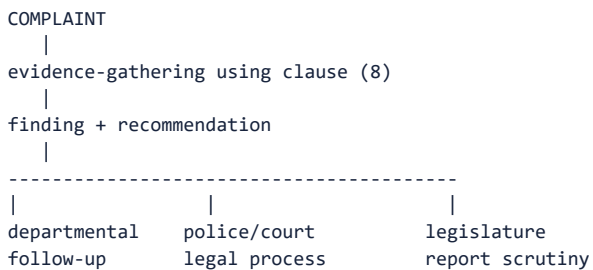
PERSONS -> summon + enforce attendance + examine on oath
DOCUMENTS -> discovery + production
AFFIDAVITS -> receive evidence
PUBLIC RECORD -> requisition from court or office
REMOTE PROOF -> issue commission for witness/document examination
OTHER MATTER -> presidential rule

Visual 16 - Power boundary

Commission can	Commission cannot merely because of clause (8)
compel attendance and documents	convict or sentence
take evidence on oath/affidavit	award damages as a civil decree
requisition public records	strike down legislation
record findings and recommend action	conclusively determine criminal guilt
use powers during specified inquiry/investigation	use them as a general policing power

[LIMIT] "Powers of a civil court" describes tools, context and subject matter. It does not confer the entire jurisdiction of a civil court.

Visual 17 - Investigation is not adjudication



NO AUTOMATIC DECREE AT THE COMMISSION STAGE

Visual 18 - Three meanings that must not be merged

Expression	Correct meaning
constitutional body	created by the Constitution
civil-court powers	specified evidence-compulsion tools during inquiry
court	judicial institution capable of binding adjudication within jurisdiction

PRELIMS TRAP

"Issuing commissions" means commissioning examination of witnesses/documents, not creating another commission.

MAINS USE

Use the tool-versus-remedy distinction in questions on quasi-judicial claims.

RECAP

Strong inquiry tools; recommendatory outcome.

SESSION 6 - REPORTS, ACTION MEMORANDA AND LEGISLATIVE ACCOUNTABILITY

VISUAL FIRST

UNION MATTER:

Commission -> President -> both Houses + action memorandum + rejection reasons

STATE MATTER:

NCSC/NCST -> Governor -> State Legislature + memorandum

NCBC -> State Government -> State Legislature + memorandum

DEFINITION / WHAT THIS IS CALLED

The report clauses transform findings into a constitutionally routed public accountability record.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The real sanction of a commission report is reason-giving and legislative visibility, not automatic legal enforceability.

MUST-WRITE KEYWORDS

annual report | other-time report | President | laying | action taken/proposed | reasons for non-acceptance

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Mandatory laying and explanatory memoranda raise the political cost of ignoring recommendations.
- **Named evidence:** Clauses (6)-(7) require reports and government responses before Parliament or the State Legislature.
- **Analysis:** Legislators and committees can compare the finding, promised action and reasons for rejection.
- **Qualification:** Submission, transmission, laying, scrutiny and implementation are separate stages and may each be delayed.

EVIDENCE AND EXPLANATION

[FACT] Each commission presents annual reports and may present reports at other times it considers fit.

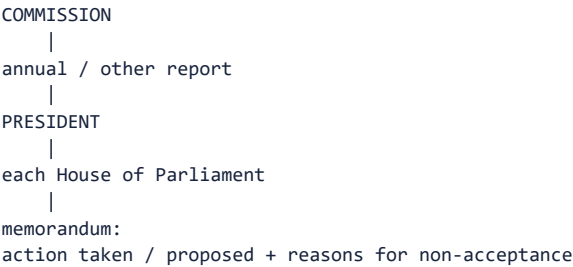
[FACT] For Union-related recommendations, the President causes the report to be laid before **each House of Parliament**, with a memorandum explaining action taken or proposed and reasons for non-acceptance.

[FACT] Articles 338(7) and 338A(7) forward State-related reports to the **Governor**, who causes laying before the State Legislature with the corresponding memorandum.

[FACT] Article 338B(7) is textually different: the State-related NCBC report is forwarded to the **State Government**, which causes it to be laid before the State Legislature with the memorandum.

[LIMIT] A shorthand saying "all three State reports go to the Governor" is inaccurate for Article 338B's enacted text.

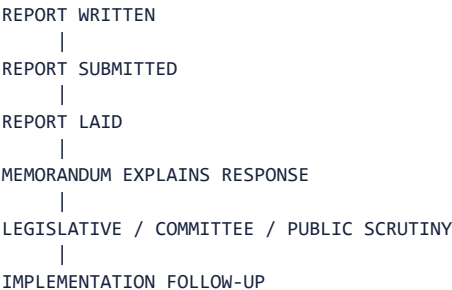
Visual 19 - Union report chain



Visual 20 - State report routes: the key textual difference

Commission	State-related copy goes to	Who causes legislative laying?
NCSC, Article 338(7)	Governor	Governor
NCST, Article 338A(7)	Governor	Governor
NCBC, Article 338B(7)	State Government	State Government

Visual 21 - Accountability stages



Caption: Submission, laying, debate and implementation are separate stages.

[CURRENT] The NCSC's official archive records a visible lag in some recent cycles; for example, combined 2020-21 and 2021-22 reports submitted on 26 September 2023 were recorded as laid on 17 December 2024.

[ANALYSIS] A delayed report can retain historical value but lose preventive impact. Timely laying and a trackable response are therefore part of institutional effectiveness.

[LIMIT] A website field showing no tabling date is not by itself conclusive proof that tabling never occurred; it is evidence of a public-record gap unless cross-verified.

Visual 22 - Reporting deficit diagnosis

Deficit	Consequence	Reform direction
delayed commission report	stale scrutiny	statutory/constitutional calendar discipline
delayed laying	weak legislative visibility	prompt transmission and laying protocol
generic memorandum	no measurable follow-up	recommendation-wise response
no public tracker	repeated recommendations disappear	status dashboard with reasons

PRELIMS TRAP

Article 338B(7) uses the State Government route; Articles 338(7) and 338A(7) use the Governor.

MAINS USE

Use this chain to explain accountability without calling recommendations binding.

RECAP

Report -> legislature -> memorandum -> reasons -> follow-up.

SESSION 7 - MAJOR-POLICY CONSULTATION: MANDATORY HEARING, NO VETO

VISUAL FIRST

DRAFT MAJOR POLICY -> RELEVANT COMMISSION CONSULTED -> REASONED GOVERNMENT DECISION

|
+> advice may influence
+> advice need not control

105TH PROVISIO: Article 338B(9) does not apply for Article 342A(3) own-list purposes.

DEFINITION / WHAT THIS IS CALLED

Clause (9) requires Union and State governments to consult the relevant commission on major policy matters affecting the protected group.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Consultation constitutionalises expert participation, but it is neither concurrence nor an automatic veto.

MUST-WRITE KEYWORDS

major policy matter | prior consultation | relevant material | non-binding advice | Article 338B(9) proviso

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Consultation is most valuable before policy closure, when evidence can still alter design.
- **Named evidence:** Clause (9) appears in all three Articles; the 105th Amendment added the Article 342A(3) exception to Article 338B(9).
- **Analysis:** The duty improves voice and reasoned administration even when the elected government retains decision authority.
- **Qualification:** The Constitution does not state that every failure to consult automatically nullifies policy; legal effect depends on context and judicial review.

EVIDENCE AND EXPLANATION

[FACT] Articles 338(9) and 338A(9) require the Union and every State Government to consult the relevant commission on all major policy matters affecting SCs or STs.

[FACT] Article 338B(9) similarly requires consultation on major policy matters affecting SEBCs.

[FACT] The 105th Amendment added a proviso to Article 338B(9): the clause does not apply for the purposes of Article 342A(3), the State/UT own-list power.

[ANALYSIS] Consultation ordinarily requires a genuine opportunity to provide views before a final policy decision. It does not mean concurrence, consent or veto unless the Constitution or a law expressly says so.

Visual 23 - Consultation ladder

Stage	Weak form	Constitutionally meaningful form
timing	after decision	before finalisation
material	headline only	draft and relevant evidence
opportunity	ceremonial meeting	reasonable opportunity to respond
government response	silence	reasoned acceptance or departure
legal effect	veto	informed but non-binding input

Visual 24 - Consultation is not concurrence

CONSULTATION:
hear + consider + decide with reasons

CONCURRENCE:
approval required before action

VETO:
power to block action

Articles 338/338A/338B use the first, not the second or third.

Visual 25 - Article 338B(9) after the 105th Amendment

MAJOR SEBC POLICY
|
normally consult NCBC
|
EXCEPTION:
State/UT law preparing its own list under Article 342A(3)
|
Article 338B(9) consultation clause does not apply for that purpose

[LIMIT] The exception should not be expanded into a claim that States never consult NCBC on any SEBC matter. It is tied to Article 342A(3).

PRELIMS TRAP

Do not turn "shall consult" into "shall obtain consent".

MAINS USE

Use consultation as the bridge between commission expertise and policy legitimacy.

RECAP

Mandatory process, advisory outcome, specific post-105th own-list exception.

SESSION 8 - NCSC: ARTICLE 338 AND THE SCHEDULED-CASTE SAFEGUARD DOMAIN

VISUAL FIRST

SC SAFEGUARDS

equality | Article 17/PCR | PoA protection | education | services | representation

|
v

NCSC: monitor -> complaint inquiry -> advice -> report

|
department | police/prosecutor | Special Court | legislature

DEFINITION / WHAT THIS IS CALLED

NCSC is the Article 338 constitutional commission for monitoring and reporting on safeguards of Scheduled Castes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

NCSC makes SC safeguards visible and answerable, but criminal enforcement and binding remedies remain with statutory authorities and courts.

MUST-WRITE KEYWORDS

Article 338 | Scheduled Castes | Protection of Civil Rights Act | PoA Act | service safeguards
| Anglo-Indian clause

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** NCSC can connect an individual denial with wider failures in anti-discrimination, representation or service administration.
- **Named evidence:** Article 338(5) supplies monitoring and complaint functions; Article 338(10), after the 102nd Amendment, retains only the Anglo-Indian extension.
- **Analysis:** Its inquiry record can guide departmental correction and legislative scrutiny.
- **Qualification:** NCSC does not register FIRs, prosecute offences, conduct criminal trials or create reservation duties contrary to Articles 15(5) and 30(1).

EVIDENCE AND EXPLANATION

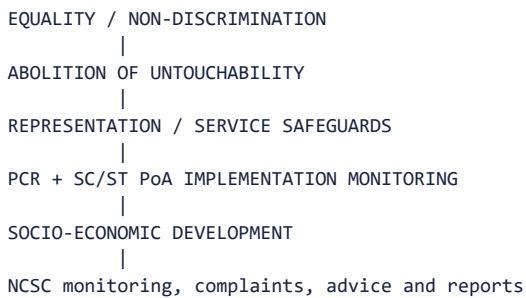
[FACT] NCSC monitors constitutional, legal and governmental safeguards for Scheduled Castes, inquires into specific complaints, advises and evaluates socio-economic development, and reports.

[FACT] Article 338(10), after the 102nd Amendment removed the earlier backward-class reference, continues to construe references to Scheduled Castes as including the Anglo-Indian community.

[ANALYSIS] NCSC's domain spans equality and representation safeguards, anti-untouchability protections, access to public institutions, service safeguards and welfare implementation.

[LIMIT] It does not itself prosecute an atrocity, register an FIR, try an offence or operate a Special Court.

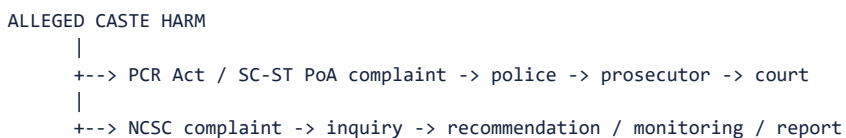
Visual 26 - NCSC safeguard map



Visual 27 - NCSC versus criminal-law institutions

Function	NCSC	Police/prosecution/Special Court
monitor safeguards	yes	incident-specific role
inquire into deprivation complaint	yes	investigate statutory offence
summon evidence in commission inquiry	yes	use criminal-procedure powers
file charge-sheet	no	police
prosecute	no	Special Public Prosecutor
determine guilt and punishment	no	competent court

Visual 28 - PCR/PoA institutional chain



The routes can coexist; they are not substitutes.

[LIMIT] A commission recommendation may trigger administrative or legal follow-up, but it does not replace proof and procedure required in court.

PRELIMS TRAP

The outdated pre-102nd Article 338(10) wording that included backward classes is no longer controlling.

MAINS USE

Use the 2018 minority-institution PYQ to demonstrate power and constitutional limit.

RECAP

NCSC monitors SC safeguards; enforcement remains distributed across administration and courts.

SESSION 9 - NCST: ARTICLE 338A AND TRIBAL LAND, FOREST AND SELF-GOVERNMENT

VISUAL FIRST

2005 President-specified field	NCST concern
minor forest produce	ownership measures
minerals and water	rights as provided by law
displacement and land alienation	relief, rehabilitation, prevention
forests and livelihoods	participation and viable strategies
PESA and shifting cultivation	implementation and disempowerment

DEFINITION / WHAT THIS IS CALLED

NCST is the Article 338A commission whose common constitutional duties are supplemented by tribal-specific functions specified by the President in 2005.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

NCST's distinctiveness lies in connecting constitutional safeguards with territory, resources, displacement, livelihood and self-government.

MUST-WRITE KEYWORDS

Article 338A | 2005 Rules | minor forest produce | land alienation | displacement | PESA | livelihood

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Tribal disadvantage cannot be assessed only through service reservation because it is also land-, forest- and governance-based.
- **Named evidence:** The National Commission for the Scheduled Tribes (Specification of Other Functions) Rules, 2005 lists eight additional function families.
- **Analysis:** The wider lens permits policy scrutiny across conservation, extraction, rehabilitation and local self-government.
- **Qualification:** NCST monitors and advises; it does not administer Scheduled Areas, decide Forest Rights Act titles or replace Gram Sabhas and statutory authorities.

EVIDENCE AND EXPLANATION

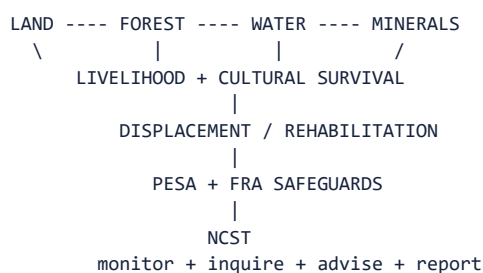
[FACT] NCST shares the common constitutional functions but has a distinctive domain because tribal safeguards involve territory, land, forests, minerals, water, displacement, self-government and cultural survival.

[FACT] Under the 2005 presidential rules, NCST's specified additional functions cover:

- ownership rights over minor forest produce;
- safeguards over mineral and water resources as provided by law;
- viable tribal livelihood strategies;
- relief and rehabilitation for displacement by development projects;
- prevention of land alienation and rehabilitation after alienation;
- tribal participation in forest protection and social afforestation;
- full implementation of PESA; and
- reduction and eventual elimination of disempowering shifting-cultivation practices.

[LIMIT] FRA, 2006 is an important later safeguard within NCST monitoring, but the 2005 notification itself predates FRA and should not be misquoted as naming it.

Visual 29 - NCST distinctive domain map



Visual 30 - 2005 additional-function matrix

Domain	NCST function	Boundary
minor forest produce	recommend ownership measures	legal vesting follows applicable law
minerals/water	recommend safeguards	does not grant mining lease
displacement	improve relief and rehabilitation	does not acquire land or award compensation
land alienation	prevention and rehabilitation measures	title disputes follow competent law/forum
forests	strengthen tribal participation	not the forest department
PESA	monitor and recommend full implementation	not a Gram Sabha or State legislature
shifting cultivation	recommend welfare/environment measures	policy must be rights-sensitive

Visual 31 - NCST and Fifth/Sixth Schedule institutions

Institution	Core role	NCST relationship
Governor under Fifth Schedule	report/regulation functions in Scheduled Areas	NCST may monitor safeguards and advise
Tribal Advisory Council	advises on ST welfare in relevant Fifth Schedule States	separate advisory institution
Gram Sabha under PESA	local self-government powers in Scheduled Areas	NCST monitors implementation
Autonomous District/Regional Council	Sixth Schedule legislative/judicial/administrative functions	NCST does not administer the council
FRA committees/Gram Sabha	forest-rights claim process	NCST monitors safeguard performance

Visual 32 - What NCST does not administer

NCST IS NOT:

- a Fifth Schedule Governor
- a Tribal Advisory Council
- a PESA Gram Sabha
- a Sixth Schedule Autonomous Council
- an FRA claim-adjudication committee
- a mining or forest regulator

NCST IS:

constitutional monitor + complaint body + adviser + reporter

PRELIMS TRAP

The 2005 text predates the Forest Rights Act, 2006; FRA is a later safeguard linkage, not quoted wording of the rules.

MAINS USE

Use the exact 2005 source label when discussing NCST's additional role.

RECAP

Common commission powers plus a verified tribal land-resource-governance mandate.

SESSION 10 - NCBC: 1993 STATUTORY ORIGIN TO ARTICLE 338B

VISUAL FIRST

INDRA SAWHNEY (1992)

|

NCBC ACT 1993: inclusion/over-inclusion/under-inclusion advice

|

102ND AMENDMENT (2018)

|

ARTICLE 338B: safeguards + complaints + development + reports + consultation

DEFINITION / WHAT THIS IS CALLED

NCBC is the Article 338B constitutional commission for socially and educationally backward classes, succeeding the statutory body created under the 1993 Act.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 102nd Amendment changed NCBC from a mainly list-focused statutory adviser into a full-spectrum constitutional safeguard commission.

MUST-WRITE KEYWORDS

Indra Sawhney | NCBC Act 1993 | Repeal Act 2018 | Article 338B | enlarged functions | Central List

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Constitutionalisation increased permanence, mandate breadth and reporting visibility.
- **Named evidence:** The 102nd Amendment inserted Article 338B, Article 342A and Article 366(26C), while the 1993 Act was repealed.
- **Analysis:** NCBC can now examine deprivation and development beyond inclusion/exclusion disputes.
- **Qualification:** The 1993 body already had civil-court inquiry powers; constitutionalisation did not make recommendations generally binding or make NCBC the final list-maker.

EVIDENCE AND EXPLANATION

[FACT] *Indra Sawhney (1992)* directed establishment of a permanent body to consider requests for inclusion and complaints of over-inclusion and under-inclusion in backward-class lists.

[FACT] The NCBC Act, 1993 created a five-member statutory body: a judicial Chairperson, a social scientist, two persons with special knowledge of backward classes and a Member-Secretary.

[FACT] The 1993 Act focused on inclusion/exclusion advice and stated that the Commission's advice under that scheme would ordinarily bind the Central Government. It also conferred civil-court evidentiary powers.

[FACT] The 102nd Amendment created the constitutional NCBC under Article 338B; the 1993 Act was repealed from the constitutional body's operational transition.

Visual 33 - Statutory-to-constitutional comparison

Dimension	NCBC Act, 1993	Article 338B after 102nd
legal source	Act of Parliament	Constitution
central purpose	inclusion/exclusion and over/under-inclusion advice	full safeguard monitoring, complaints, development, reports and recommendations
composition	judicial Chair + specialist structure + Member-Secretary	Chair + Vice-Chair + three Members
appointment	Central Government under statute	President by warrant
civil-court tools	yes, by statute	yes, constitutionally specified
report route	statutory	President -> Parliament; State route under clause (7)
major-policy consultation	not the same constitutional command	Article 338B(9), subject to 105th proviso
binding effect	"ordinarily binding" advice in specific statutory scheme	no general binding force in Article 338B

Visual 34 - What actually changed

```

NARROWER LIST-ADVICE BODY
|
102nd Amendment
v
CONSTITUTIONAL SAFEGUARD BODY
|-- monitor all safeguards
|-- inquire into rights complaints
|-- advise/evaluate development
|-- report through constitutional route
|-- mandatory major-policy consultation
+++ civil-court tools retained in constitutional form

```

Visual 35 - What did not change

Continuity	Qualification
evidentiary inquiry powers	do not become adjudicatory decree powers
expert advisory character	recommendations remain non-binding
inclusion/exclusion relevance	final Central List change follows Article 342A and parliamentary law
reservation-policy context	policy remains subject to Articles 14-16 and judicial review
need for credible data	constitutional status does not create data automatically

[ANALYSIS] Constitutionalisation increased breadth, permanence and public accountability, but it did not convert NCBC into the final list-making authority or a reservation court.

PRELIMS TRAP

Do not say NCBC became constitutional merely by amendment of the 1993 Act; Article 338B created the constitutional body.

MAINS USE

Use this before/after contrast for the direct 2022 GS-II PYQ.

RECAP

Status, scope and accountability expanded; adjudicatory force did not.

SESSION 11 - ARTICLES 341 AND 342: SPECIFYING SCHEDULED CASTES AND TRIBES

VISUAL FIRST

INITIAL SPECIFICATION FOR A STATE/UT

President -> public notification
(Governor consulted where a State is concerned)

LATER INCLUSION OR EXCLUSION

Parliament -> law

Commission advice / certificate administration / court review != final list amendment

DEFINITION / WHAT THIS IS CALLED

Articles 341 and 342 create territory-specific constitutional list routes for Scheduled Castes and Scheduled Tribes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The Constitution separates identification by notification/law from administration of certificates and distribution of reservation benefits.

MUST-WRITE KEYWORDS

Article 341 | Article 342 | Presidential notification | Governor consultation | parliamentary law | territorial specificity

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** A closed constitutional amendment route protects list certainty and national legislative control.
- **Named evidence:** The President initially specifies; Parliament alone later includes or excludes from the notified SC/ST list.
- **Analysis:** A community may have status in one State or UT and not another because the constitutional lists are territorial.
- **Qualification:** Courts review legality and interpretation but do not ordinarily substitute a judicial list for the Article 341/342 procedure.

EVIDENCE AND EXPLANATION

[FACT] Under Article 341(1), the President may, for a State or Union territory and after consultation with the Governor where it is a State, specify by public notification the castes, races, tribes or parts/groups deemed Scheduled Castes for that territory.

[FACT] Under Article 342(1), the parallel rule applies to tribes or tribal communities or parts/groups deemed Scheduled Tribes.

[FACT] Under Articles 341(2) and 342(2), Parliament may by law include or exclude entries. Except through that parliamentary route, a subsequent notification cannot vary the original notification.

[FACT] SC/ST status is territorial: a community recognised in one State need not be recognised in another.

Visual 36 - SC list legal chain

INITIAL SPECIFICATION

President + Governor consultation for a State

public notification

State/UT-specific SC list

LATER INCLUSION / EXCLUSION

Parliament by law

Visual 37 - ST list legal chain

INITIAL SPECIFICATION

President + Governor consultation for a State

public notification

State/UT-specific ST list

LATER INCLUSION / EXCLUSION

Parliament by law

Visual 38 - Who cannot finally alter an SC/ST list alone?

Actor	Can recommend/supply evidence?	Can finally include/exclude alone?
NCSC/NCST	yes	no
State Government	yes	no
Governor	consulted in initial State notification	no
President	initial specification by notification	not later variation alone
Parliament	yes	yes, by law
court	interprets legality/entry; cannot rewrite list as legislature	no legislative substitution

Visual 39 - Identification versus distribution

Question	Governing idea
Who belongs to the constitutional SC/ST list?	Articles 341/342
May benefits be rationally distributed within the list?	equality/reservation doctrine, including <i>Davinder Singh (2024)</i>
May a listed caste be removed through sub-classification?	no; list alteration follows Article 341(2)

PRELIMS TRAP

A Governor, commission, ministry or caste-certificate authority cannot finally add a community to the list.

MAINS USE

Use identification-versus-administration as the controlling distinction.

RECAP

President first, Parliament later; territorial list, separate administrative proof.

SESSION 12 - ARTICLE 342A AND ARTICLE 366(26C): CENTRAL AND STATE SEBC LISTS

VISUAL FIRST

CENTRAL LIST - Article 342A(1)-(2)

President specifies -> Parliament varies -> Central Government purposes

STATE/UT OWN LIST - Article 342A(3), after 105th

State/UT may prepare and maintain by law -> own purposes -> may differ

Article 366(26C) = definition bridge to the applicable Article 342A list.

DEFINITION / WHAT THIS IS CALLED

Post-105th Article 342A separates the Central List for Central purposes from State/UT lists for their own purposes.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The 105th Amendment restored a dual-list federal architecture without turning NCBC consultation into State-list veto power.

MUST-WRITE KEYWORDS

Article 342A | Central List | Article 342A(3) | State/UT by law | Article 366(26C) | own purposes

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** SEBC identification now follows differentiated Central and State legal routes.
- **Named evidence:** The 105th Amendment rewrote Article 342A, adjusted Article 366(26C) and added a proviso to Article 338B(9).
- **Analysis:** This permits list variation across levels while preserving a constitutionally defined Central List.
- **Qualification:** Own-list power remains subject to equality, legislative competence and judicial review; it does not determine reservation percentages.

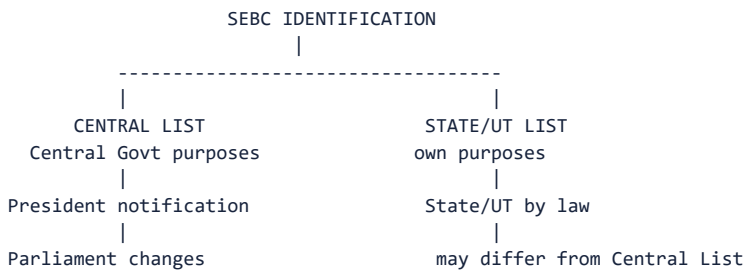
EVIDENCE AND EXPLANATION

[FACT] The 102nd Amendment originally inserted Article 342A, allowing presidential specification of SEBCs for a State/UT and parliamentary inclusion/exclusion, and inserted Article 366(26C).

[FACT] The 105th Amendment rewrote the architecture:

- Article 342A(1) concerns SEBCs in the **Central List** for Central Government purposes;
- Article 342A(2) gives Parliament the inclusion/exclusion role for the Central List;
- the Explanation defines Central List as prepared and maintained by and for the Central Government;
- Article 342A(3) permits every State or Union territory, **by law**, to prepare and maintain its own list for its own purposes, even if entries differ from the Central List; and
- Article 366(26C) defines SEBCs by reference to Article 342A for Central, State or Union-territory purposes as applicable.

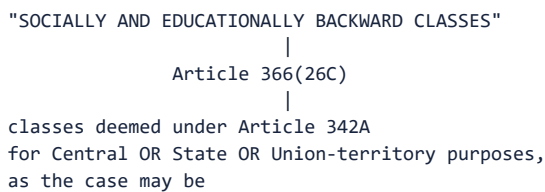
Visual 40 - Post-105th dual-list architecture



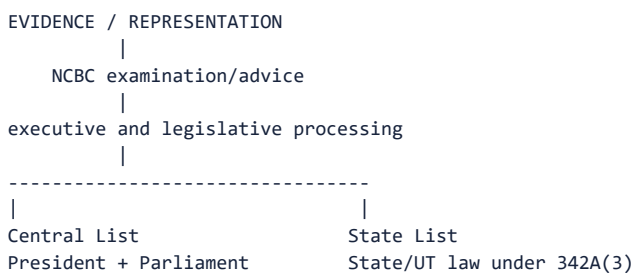
Visual 41 - Article 342A clause map

Clause	Rule	Exam trap
342A(1)	President specifies Central List for Central purposes	not every State-purpose list
342A(2)	Parliament includes/excludes from Central List	NCBC does not issue final inclusion order
Explanation	defines Central List	central and State lists may differ
342A(3)	State/UT may by law maintain own list	explicit post-105th power

Visual 42 - Article 366(26C) bridge



Visual 43 - Commission advice versus legal list change



[LIMIT] A recommendation can be influential and procedurally important without being the final constitutive act.

PRELIMS TRAP

Do not apply the Article 341/342 parliamentary-variation rule mechanically to a State's Article 342A(3) own list.

MAINS USE

Use the dual-list diagram for federalism and post-Maratha answers.

RECAP

Central List for Centre; State/UT list by law for own purposes; NCBC advice is not the legal instrument.

SESSION 13 - AMENDMENTS AND CASES: IDENTIFICATION, RESERVATION AND DISTRIBUTION

VISUAL FIRST

INDRA SAWHNEY 1992 -> permanent backward-class body
JAISHRI PATIL 2021 -> majority reading of original 342A displaced State identification
105TH AMENDMENT 2021 -> explicit State/UT own-list power
DAVINDER SINGH 2024 -> evidence-based SC sub-classification permitted;
E.V. Chinnaiiah overruled on that issue

DEFINITION / WHAT THIS IS CALLED

The case-amendment trajectory distinguishes who identifies a class, who designs reservation and how benefits may be distributed within a listed class.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

List identity, reservation validity and internal distribution are related but legally distinct questions.

MUST-WRITE KEYWORDS

Indra Sawhney | Jaishri Laxmanrao Patil | 105th Amendment | Davinder Singh | E.V. Chinnaiiah | sub-classification

COMMISSION-SPECIFIC PARAGRAPH MODEL

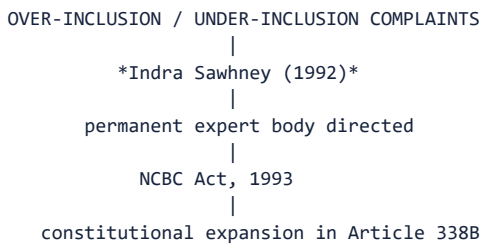
- **Claim:** Constitutional interpretation can trigger institutional or federal correction through amendment.
- **Named evidence:** The Maratha judgment's 102nd-Amendment interpretation was answered by the 105th; Davinder Singh later overruled E.V. Chinnaiiah on SC sub-classification.
- **Analysis:** The sequence shows dialogue among court, Parliament and States over equality and federal competence.
- **Qualification:** Creamy-layer remarks in Davinder Singh concurrences are distinct from the binding sub-classification ratio; Jarnail Singh concerns promotion doctrine, and Janhit Abhiyan concerns EWS.

EVIDENCE AND EXPLANATION

Visual 44 - 65th to 105th master trajectory

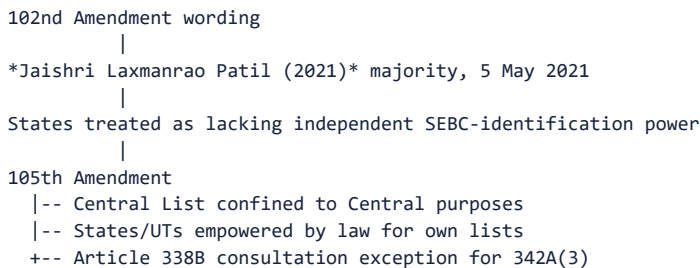
Event	Institutional/legal move	Core lesson
65th Amendment	Special Officer -> combined commission	collective monitoring
89th Amendment	NCSC separated from NCST	group-specific expertise
<i>Indra Sawhney (1992)</i>	permanent BC body directed	regular list review
NCBC Act, 1993	statutory NCBC	list-advice institution
102nd Amendment	constitutional NCBC + Article 342A	status and list architecture linked
<i>Jaishri Laxmanrao Patil (2021)</i>	majority read State identification power as displaced	federal consequence of wording
105th Amendment	Central/State list distinction explicit	State power restored/clarified
<i>Davinder Singh (2024)</i>	SC sub-classification allowed with evidence	distribution within list differs from alteration of list

Visual 45 - Indra Sawhney (1992) to NCBC



[LIMIT] Detailed creamy-layer tests and the entire 50 per cent doctrine belong to the reservation owner. Here, *Indra Sawhney (1992)* is used primarily for NCBC's institutional origin.

Visual 46 - Maratha judgment and 105th Amendment

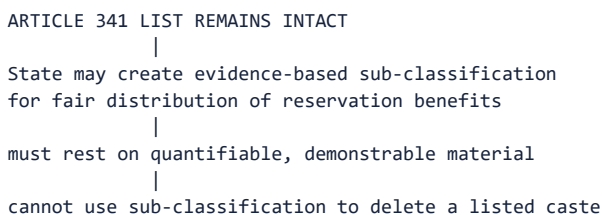


[FACT] The Maratha reservation law also failed the Court's 50 per cent ceiling analysis; that holding should not be collapsed into the separate Article 342A federal issue.

Visual 47 - Two holdings, two questions

Jaishri Laxmanrao Patil (2021) issue	Question	Later constitutional response
reservation ceiling	did exceptional circumstances justify breach?	no 105th Amendment answer; reservation doctrine remains
SEBC identification power	what did 102nd wording do to State power?	105th expressly restored/clarified State/UT own lists

Visual 48 - Davinder Singh (2024) boundary



[CURRENT] *Davinder Singh (2024)* overruled *E.V. Chinnaiah* on the permissibility of sub-classification. Separate opinions discussed creamy-layer ideas; those observations should not be presented as one unanimous legislated SC/ST exclusion rule.

PRELIMS TRAP

Do not convert any of these cases into a power of NCSC, NCST or NCBC to grant reservation.

MAINS USE

Use the timeline to separate holding, legislative response and unresolved policy choices.

RECAP

Identify the legal question before citing the case: class identification, ceiling/promotion, EWS or internal distribution.

SESSION 14 - NCSC, NCST AND NCBC: SAME ENGINE, DIFFERENT TERRAIN

VISUAL FIRST

Body	Group	Distinctive emphasis
NCSC, Art 338	Scheduled Castes	untouchability, discrimination, services, atrocity safeguards
NCST, Art 338A	Scheduled Tribes	land, forest, displacement, resources, PESA
NCBC, Art 338B	SEBCs	safeguards plus Central/State list federalism

DEFINITION / WHAT THIS IS CALLED

The three commissions are constitutional peers with parallel powers but different protected groups, evidence bases and institutional interfaces.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Formal symmetry should not be mistaken for functional interchangeability.

MUST-WRITE KEYWORDS

parallel clauses | differentiated mandate | specialist evidence | territorial disadvantage | list federalism

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Specialisation improves the fit between inquiry method and the structure of disadvantage.
- **Named evidence:** Article 338A's 2005 additional functions and Article 338B's connection to Article 342A illustrate different institutional terrain.
- **Analysis:** A complaint about land alienation, untouchability or SEBC-list treatment requires different legal and administrative pathways.
- **Qualification:** Intersectional harms may engage more than one body, so referral and joint fact-finding remain necessary.

EVIDENCE AND EXPLANATION

Visual 49 - Three-commission comparison

Dimension	NCSC	NCST	NCBC
Article	338	338A	338B
beneficiary group	SCs; clause (10) Anglo-Indian reference	STs	SEBCs
separate origin	19 Feb 2004	19 Feb 2004	15 Aug 2018 constitutional
specialised extra domain	SC safeguards/atrocity monitoring	2005 tribal land/forest/resource/PESA functions	Central/State SEBC policy and list context
State report recipient	Governor	Governor	State Government
consultation	all major SC policy	all major ST policy	all major SEBC policy, except 342A(3) purpose
final list authority	Article 341	Article 342	Article 342A

Visual 50 - Same engine, different terrain

SHARED ENGINE:

monitor + complaint + development advice + report + civil-court tools

DIFFERENT TERRAIN:

NCSC -> caste discrimination, untouchability, representation, atrocity safeguards

NCST -> territory, land, forest, resources, displacement, PESA/FRA

NCBC -> SEBC safeguards, development, policy and dual-list architecture

PRELIMS TRAP

Shared composition and powers do not mean one commission can assume another's constitutional constituency.

MAINS USE

Use the comparison table instead of writing three disconnected descriptions.

RECAP

Common constitutional form; group-specific evidence, law and administration.

SESSION 15 - INSTITUTIONAL FIREWALLS: WHO DOES WHAT

VISUAL FIRST

COMMISSION -> investigates, recommends, reports

MINISTRY/DEPARTMENT -> designs and implements policy

POLICE/PROSECUTOR -> investigates and prosecutes offences

COURT/TRIBUNAL -> binding adjudication within jurisdiction

STATE COMMISSION -> State-law/State-mandate complement

NHRC/NCW/NCM/NCPDR -> separate statutory mandates

DEFINITION / WHAT THIS IS CALLED

Institutional firewalls allocate monitoring, implementation, enforcement, adjudication and list administration to different bodies.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Effective protection depends on coordinated specialisation, not on treating every rights institution as interchangeable.

MUST-WRITE KEYWORDS

jurisdiction | referral | ministry | police | court | State commission | statutory body | coordinated specialisation

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Clear role allocation prevents both remedy gaps and constitutional overclaiming.
- **Named evidence:** Articles 338-338B confer inquiry and reporting powers, while criminal statutes, service rules and constitutional courts confer separate enforcement powers.
- **Analysis:** A well-designed complaint system should route the matter to the authority capable of granting the needed remedy.
- **Qualification:** Overlap may justify joint inquiry or shared intake, not automatic merger or hierarchy under NHRC.

EVIDENCE AND EXPLANATION

[ANALYSIS] Rights problems often cross institutions. The correct answer is to map concurrent roles rather than nominate one omnipotent body.

Visual 51 - NCSC overlap map

Problem	NCSC role	Other decisive institution
untouchability practice	monitor/inquire/recommend	police/court under PCR law where offence
atrocities	monitor complaint and safeguard implementation	police, prosecutor, Special Court
service discrimination	inquire and recommend	department, tribunal or constitutional court
reservation in minority institution	advise within mandate	Articles 15(5), 30 and courts control limit

Visual 52 - NCST overlap map

Problem	NCST role	Other decisive institution
FRA claim denial	monitor/inquire	Gram Sabha/SDLC/DLC and courts under law
land acquisition/displacement	safeguards and rehabilitation advice	acquiring authority, LARR process, courts
mining in Scheduled Area	resource-right monitoring	statutory regulators, Gram Sabha where law requires, courts
PESA non-implementation	monitor and recommend	State legislature/executive and local institutions

Visual 53 - NCBC overlap map

Problem	NCBC role	Other decisive institution
Central List inclusion request	examine/advise	President/Parliament under Article 342A
State own-list law	general safeguard role; 338B(9) exception applies to 342A(3) purpose	State/UT legislature
reservation validity	evidence/advise	Constitution, legislature/executive and courts
welfare exclusion complaint	inquire and recommend	responsible department and legal forum

PRELIMS TRAP

A Ministry department is the implementing executive; a commission is not its appellate court.

MAINS USE

Use the actor-remedy map in questions on overlap, duplication or institutional reform.

RECAP

Monitor, implement, enforce and adjudicate are different verbs assigned to different institutions.

SESSION 16 - CONSTITUTIONAL AND STATUTORY BODIES: STATUS WITHOUT MYTH

VISUAL FIRST

Feature	NCSC/NCST/NCBC	NHRC/NCW/NCM/NCPCR
source	Constitution	Act of Parliament
change/abolition	constitutional amendment	statutory amendment/repeal
recommendation	generally advisory	generally advisory
court status	no	no
value	entrenched specialist accountability	statutory specialist/umbrella protection

DEFINITION / WHAT THIS IS CALLED

A constitutional body derives existence directly from the Constitution; a statutory body derives existence from legislation.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

Constitutional entrenchment strengthens permanence and visibility, but effectiveness still depends on powers, capacity and follow-up.

MUST-WRITE KEYWORDS

constitutional body | statutory body | entrenchment | advisory force | functional capacity | umbrella commission

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Source of authority matters, but formal status alone does not measure institutional performance.
- **Named evidence:** NCSC, NCST and NCBC arise under Articles 338-338B; NHRC, NCW, NCM and NCPCR arise under parliamentary statutes.
- **Analysis:** Entrenchment raises the legal cost of abolition and constitutionalises reporting, while statutory bodies may still possess substantial specialist powers.
- **Qualification:** Neither label automatically creates binding orders, adequate staff or prompt implementation.

EVIDENCE AND EXPLANATION

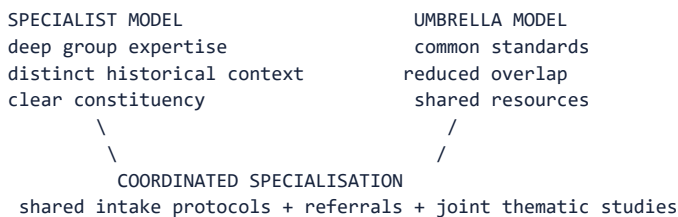
Visual 54 - National-body comparison matrix

Body	Legal basis	Primary constituency/domain	Core legal effect
NCSC	Article 338	Scheduled Castes	constitutional monitoring/advice/reporting
NCST	Article 338A	Scheduled Tribes	constitutional monitoring with tribal-specific domain
NCBC	Article 338B	SEBCs	constitutional monitoring plus SEBC-policy/list context
NHRC	Protection of Human Rights Act, 1993	broad human-rights violations	statutory inquiry/recommendation
National Commission for Minorities	NCM Act, 1992	notified minorities	statutory safeguard monitoring/advice
State SC/ST/BC commissions	State law/executive framework varies	State-specific constituency	territorial statutory/advisory role

Visual 55 - Constitutional versus statutory status

Test	Constitutional commission	Statutory commission
source	Constitution	Act of legislature
abolition/redesign	constitutional amendment for constitutional core	legislative amendment/repeal
powers	constitutional text plus rules	statute plus rules
recommendation force	depends on text; usually advisory here	depends on statute; can still be advisory
quality guarantee	none automatic	none automatic

Visual 56 - Specialist versus umbrella model



[ANALYSIS] Constitutional merger of NCSC, NCST and NCBC would require amendment and risks diluting distinct problems. Coordination is a more proportionate first reform than abolition.

PRELIMS TRAP

The Law Commission is executive, NCDRC statutory and NCBC constitutional after 2018.

MAINS USE

Use this status-capacity distinction for the 2020 constitutionalisation and 2018 umbrella-body PYQs.

RECAP

Ask two questions: where does the body come from, and what can it actually do?

SESSION 17 - INDEPENDENCE, ACCESS, DATA AND FOLLOW-UP

VISUAL FIRST

EFFECTIVENESS =
 credible appointments + filled posts + staff/regional access
 + reliable disaggregated data + case-management
 + timely reports + reasoned response + legislative follow-up
 + accessible offline/online complaint routes

DEFINITION / WHAT THIS IS CALLED

Institutional effectiveness is the capacity to convert constitutional mandate into accessible inquiry, reliable evidence and implemented correction.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The principal weakness is often not absence of mandate but the distance between constitutional visibility and administrative follow-through.

MUST-WRITE KEYWORDS

appointment transparency | vacancies | regional access | case management | disaggregated data | intersectionality | follow-up

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Independence requires operational capacity as well as formal constitutional status.
- **Named evidence:** Presidential appointment, procedure-regulating power and report routes provide stature, while staffing, budgeting and implementation depend on government systems.

- **Analysis:** Vacancies, inaccessible complaint channels and weak data can make even strong formal powers episodic.
- **Qualification:** These are recurring design risks, not evidence that every commission or every recommendation is ineffective.

EVIDENCE AND EXPLANATION

[FACT] Constitutional status, presidential appointment, own procedure, civil-court tools and legislative reporting give institutional stature.

[ANALYSIS] Independence remains incomplete where appointments are executive-led, secretariats depend on government resources, posts remain vacant, reports are delayed or recommendations lack follow-up.

[LIMIT] These are design and implementation risks, not proof that every commission is ineffective in every case.

Visual 57 - Independence balance sheet

Strength	Counter-pressure
constitutional entrenchment	executive-led appointment process
President-appointed membership	service/resources determined within governmental framework
procedure-regulating power	administrative dependence
evidence-compulsion tools	no final adjudicatory sanction
report to constitutional authorities	laying and follow-up may be delayed

Visual 58 - Effectiveness equation

EFFECTIVENESS =
 legal status
 + member independence
 + staff and regional capacity
 + evidence quality
 + timely reports
 + government response
 + legislative scrutiny
 + implementation follow-up

Status alone is one term, not the whole equation.

Visual 59 - Advisory-force spectrum

Level	Example	Force
observation	field finding	persuasive
recommendation	corrective measure	advisory
consultation	input before major policy	mandatory process, non-binding outcome
report memorandum	reasons for acceptance/non-acceptance	accountability
court order	decree/judgment	binding within jurisdiction

Visual 60 - Recurring implementation deficits

Deficit	Institutional effect
vacancies	fewer hearings and studies
weak regional reach	access cost for complainants
poor data	generic recommendations
jurisdictional overlap	forum confusion
delayed reports	reduced preventive value
weak follow-up	repeated non-compliance
overclaiming civil-court status	legal confusion and credibility loss

REFORM AGENDA - PROPOSALS, NOT CURRENT LAW

[ANALYSIS] The following are reform proposals. None should be written as an existing constitutional requirement unless enacted.

Visual 61 - Problem-to-reform matrix

Problem	Reform proposal	Qualification
opaque appointments	public criteria, search process and reasoned selection	preserve constitutional appointing authority
vacancies	time-bound appointment calendar	avoid automatic extension without law
delayed reports	fixed submission, transmission and laying timelines	may require rules/law
weak follow-up	recommendation-wise digital dashboard	protect complainant privacy
poor coordination	inter-commission referral protocol	do not erase specialist jurisdiction
generic evidence	common data and research standards	retain group-specific indicators
weak local access	staffed regional offices and digital filing	digital route must not exclude offline claimants

Visual 62 - Appointment reform options

VACANCY FORECAST
|
PUBLIC ELIGIBILITY CRITERIA
|
SEARCH / SHORTLIST WITH DISCLOSED PROCESS
|
PRESIDENTIAL APPOINTMENT
|
CONFLICT-OF-INTEREST + PERFORMANCE DISCLOSURE

Visual 63 - Follow-up dashboard design

Field	Purpose
recommendation number	precise tracking
responsible ministry/State	ownership
accepted/partly accepted/not accepted	status clarity
reasons	constitutional accountability
deadline	implementation discipline
evidence of completion	prevents paper compliance

Visual 64 - Why blanket binding power is not an easy cure

MORE BINDING POWER

|
possible faster compliance

|
but also:
separation-of-powers concerns
policy rigidity
overlap with courts/administration
need for appeal and procedure

BETTER FIRST STEP:

timely evidence + reasoned response + legislative scrutiny

PRELIMS TRAP

Do not cite an undated backlog or current vacancy count as a permanent constitutional feature.

MAINS USE

Use the effectiveness equation for a balanced evaluation and reform paragraph.

RECAP

Status + capacity + evidence + access + response + scrutiny = effective commission.

SESSION 18 - REFORM WITHOUT CREATING PARALLEL COURTS

VISUAL FIRST

Problem	Proportionate reform
opaque or delayed appointments	public criteria and vacancy calendar
fragmented complaints	common intake and reasoned referral
weak evidence	shared data standards and research cells
delayed reports	submission/laying/response tracker
inaccessible process	regional, multilingual and offline channels
overlap	joint inquiry protocols, not indiscriminate merger

DEFINITION / WHAT THIS IS CALLED

Commission reform should strengthen independence, evidence, access and accountability while preserving constitutional role boundaries.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

The first reform priority is enforceable accountability around process and response, not an unqualified conversion of commissions into courts.

MUST-WRITE KEYWORDS

transparent selection | referral protocol | dashboard | multilingual access | privacy | legislative scrutiny

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Better process can increase practical force without distorting separation of functions.
- **Named evidence:** The existing Constitution already supplies inquiry, consultation and report levers that can be made timelier and more transparent.
- **Analysis:** Recommendation-wise tracking identifies the responsible government and prevents generic action-taken memoranda.
- **Qualification:** Any stronger remedial power would require clear jurisdiction, procedure, appeal and constitutional competence.

EVIDENCE AND EXPLANATION

Visual 65 - Stable and volatile facts

Stable legal fact	Volatile fact deliberately not frozen
Article numbers and clause design	current officeholders
constitutional composition	current vacancies
amendment commencement dates	complaint-disposal totals
report-laying architecture	pending case counts
2005 NCST functions	website headline statistics

[CURRENT] Official NCSC, NCST and NCBC mandate pages were checked on 8 September 2026; no office-holder or vacancy claim is frozen in this package.

[CURRENT] The latest constitutional development directly controlling the dual SEBC-list architecture remains the 105th Amendment, while *Davinder Singh (2024)* supplies the major recent SC-list distribution doctrine.

[LIMIT] Commission annual reports may contain useful sector findings, but a statistic must carry its reporting period, definition and publication date. This package does not turn a dashboard count into a timeless fact.

ANSWER-WRITING ARCHITECTURE

Visual 66 - Claim-evidence-analysis-qualification unit

CLAIM
"Constitutional status raises accountability."
|
NAMED EVIDENCE
Articles 338-338B: President, Parliament, memorandum
|
ANALYSIS
government must publicly explain acceptance or rejection
|
QUALIFICATION
recommendations remain non-binding and laying can be delayed

Visual 67 - 10-mark answer blueprint

Segment	Content
20 words	direct thesis and Article
80 words	three changes/functions with named evidence
30 words	one limit or complication
20 words	graded verdict

Visual 68 - 15-mark answer blueprint

INTRO: constitutional/statutory context

BODY 1: design and functions

BODY 2: named amendment/case trajectory

BODY 3: limits and accountability

CONCLUSION: status + capacity + follow-up verdict

Visual 69 - 20-mark answer blueprint

Dimension	Evidence
history	Special Officer, 65th, 89th, 1993 Act, 102nd
constitutional design	clauses (1)-(9)
group specificity	NCSC/NCST/NCBC domains
list mechanics	Articles 341/342/342A
federal/equality doctrine	<i>Jaishri Laxmanrao Patil (2021)</i> , 105th, <i>Davinder Singh (2024)</i>
evaluation	advisory force, reports, vacancies/resources
reform	appointment, data, follow-up, coordination

Visual 70 - Directive map

Directive	Required operation
discuss	explain dimensions and reach a balanced view
examine	test claim against law, evidence and limits
analyse	show causal/institutional relationships
evaluate	apply criteria and give a graded judgment
argue your case	take a position after engaging the opposite case

Visual 71 - High-risk trap board

Wrong statement	Correct control
civil-court powers make the body a court	tools only during specified inquiry/investigation
commission adds a community to the list	final authority follows Articles 341/342/342A
consultation means consent	views must be sought; advice is non-binding
all State reports go to Governor	Article 338B(7) says State Government
89th Amendment operated in 2003	separate bodies operated from 19 Feb 2004
102nd began on assent date	commenced 15 Aug 2018
105th began on assent date	commenced 15 Sep 2021
NCST administers Scheduled Areas	it monitors/advises; constitutional institutions administer

PRELIMS TRAP

A reform proposal is not current law merely because it appears in a commission report or academic recommendation.

MAINS USE

Use a problem-reform-qualification table to keep proposals realistic.

RECAP

Strengthen selection, capacity, access, data and follow-up before demanding blanket binding power.

SESSION 19 - EVIDENCE CONTROL AND INTEGRATED ANSWER SPINE

VISUAL FIRST

```

STABLE LAW: Article -> amendment -> rule -> binding holding
                |
                v
ANSWER: definition -> mechanism -> named evidence -> analysis -> qualification
                |
                v
VOLATILE CLAIM: date-stamp official source or omit
  
```

DEFINITION / WHAT THIS IS CALLED

The integrated answer spine combines source control with a repeatable method for converting constitutional text into institutional analysis.

ANSWER-GRABBING OPENING - WRITE/ADAPT IN THE EXAM

A reliable commission answer begins with stable constitutional law, explains the accountability mechanism and dates-or omits-volatile administrative claims.

MUST-WRITE KEYWORDS

control date | Article | amendment | named evidence | institutional effect | qualification | graded verdict

COMMISSION-SPECIFIC PARAGRAPH MODEL

- **Claim:** Constitutional status strengthens visibility but does not guarantee compliance.
- **Named evidence:** Articles 338-338B require reports, action memoranda and reasons for non-acceptance.
- **Analysis:** Public reasons permit legislative scrutiny and expose implementation gaps.
- **Qualification:** Recommendations remain advisory, and delayed laying or weak follow-up can reduce practical force.

EVIDENCE AND EXPLANATION

Stable and examinable	Date-stamp or omit
Articles and amendment effects	chairperson/member names
constitutional composition	vacancies and case backlog
rules-based tenure	disposal statistics
report routes and powers	website dashboard totals
binding case holdings	pending litigation posture

ART 338 NCSC -----\
 ART 338A NCST -----> COMMON DESIGN:
 ART 338B NCBC -----/ five persons, six duties, reports,
 civil-court tools and consultation

LISTS:
 341 SC -> President initially; Parliament later changes
 342 ST -> President initially; Parliament later changes
 342A SEBC -> Central List for Centre + State/UT own list by law

LIMITS:
 recommendation != decree
 consultation != concurrence
 sub-classification != list alteration

Recall point	Date/effect
combined constitutional commission	12 March 1992
statutory NCBC	1993
separate NCSC and NCST	19 February 2004
NCST additional functions	2005 Rules
constitutional NCBC	15 August 2018
<i>Jaishri Laxmanrao Patil</i>	5 May 2021
105th own-list architecture	15 September 2021
<i>Davinder Singh</i>	1 August 2024

DEFINE BODY + ARTICLE
 |
 TRACE ORIGIN / AMENDMENT
 |
 STATE FUNCTION, POWER OR LIST ROUTE
 |
 ADD RULE / REPORT CLAUSE / CASE
 |
 EXPLAIN ACCOUNTABILITY EFFECT
 |
 QUALIFY: ADVISORY, NOT COURT OR LIST-MAKER
 |
 REFORM + GRADED VERDICT

PRELIMS TRAP

Do not infer legal power from an undated website label, roster or dashboard count.

MAINS USE

Scale the same spine for 10, 15 or 20 marks by adding comparison, case law and reform without dropping the legal limit.

RECAP

Stable source -> exact provision -> mechanism -> evidence -> effect -> limit -> verdict.

Exactly **32 original MCQs** appear before PYQs. Correct-option sequence: ABCD repeated eight times. Every option has a distinct explanation and every question has a unique examiner trap.

BASIC MCQS / REMEDIATION

MCQ 1. Each of the present NCSC, NCST and NCBC consists of:

A. a Chairperson, a Vice-Chairperson and three other Members B. a Chairperson, a Vice-Chairperson and five other Members C. one Special Officer and four advisers D. a Chairperson and four Members without a Vice-Chairperson

Answer: A.

Option-specific explanations:

- **A:** This is the common five-person design in Articles 338(2), 338A(2) and 338B(2).
- **B:** Five other Members belonged to the historical combined commission, making seven persons in all.
- **C:** The Special Officer was the original Article 338 design, not the present commission structure.
- **D:** Each current Article expressly includes a Vice-Chairperson.

Examiner trap 1: Current five-person composition must not be confused with the seven-person combined NCSC/ST.

MCQ 2. The first constitutional combined National Commission for Scheduled Castes and Scheduled Tribes was constituted on:

A. 19 February 2004 B. 12 March 1992 C. 15 August 2018 D. 21 July 1978

Answer: B.

Option-specific explanations:

- **A:** This is the operational date of separate NCSC and NCST after the 89th Amendment.
- **B:** The NCSC official history records constitution of the first 65th-Amendment commission on this date.
- **C:** This is the commencement date of the constitutional NCBC architecture.
- **D:** The 1978 executive resolution created a non-statutory multi-member commission.

Examiner trap 2: The 65th Amendment Act year and the first commission's 1992 constitution date are different.

MCQ 3. The 89th Amendment principally:

A. created the first statutory NCBC B. inserted Article 342A C. amended Article 338 and inserted Article 338A to separate NCSC and NCST D. restored State SEBC-list power

Answer: C.

Option-specific explanations:

- **A:** The NCBC Act, 1993 created the statutory backward-classes body.
- **B:** Article 342A was inserted by the 102nd Amendment.
- **C:** This is the exact constitutional separation effected by the 89th Amendment.
- **D:** The 105th Amendment supplied the State/UT own-list clarification.

Examiner trap 3: The Amendment was enacted in 2003; the separate commissions became operational on 19 February 2004.

MCQ 4. The constitutional NCBC architecture under the 102nd Amendment commenced on:

A. 11 August 2018 B. 14 August 2018 C. 18 August 2021 D. 15 August 2018

Answer: D.

Option-specific explanations:

- **A:** This was the assent date, not commencement.
- **B:** The commencement notification was dated 14 August but appointed the next day.
- **C:** This is the 105th Amendment assent date.
- **D:** The notified commencement date for Article 338B and connected provisions was 15 August 2018.

Examiner trap 4: Assent, notification and commencement are distinct legal dates.

MCQ 5. Under the service-and-tenure rules governing the three commissions, members ordinarily hold office for:

A. three years, with no more than two terms B. five years without reappointment C. six years or age sixty-five, whichever is earlier D. a term fixed directly in each constitutional Article

Answer: A.

Option-specific explanations:

- **A:** The 2004 NCSC/NCST rules and 2018 NCBC rules use a three-year term and two-term ceiling.
- **B:** Five years is not the rule-based tenure for these commissions.
- **C:** That formula belongs to other constitutional offices and is not the commission rule.
- **D:** The Articles leave service conditions and tenure to presidential rules subject to parliamentary law.

Examiner trap 5: Tenure is rule-based; it is not textually fixed in Articles 338, 338A or 338B.

MCQ 6. Article 338(10), after the 102nd Amendment, extends the Scheduled-Caste reference to:

A. other backward classes B. the Anglo-Indian community C. religious minorities D. economically weaker sections

Answer: B.

Option-specific explanations:

- **A:** The 102nd Amendment removed the earlier backward-class extension from Article 338.
- **B:** The current constitutional text retains the Anglo-Indian extension.
- **C:** Religious minorities are not added by clause (10).
- **D:** EWS is governed through Articles 15(6) and 16(6), not Article 338(10).

Examiner trap 6: Official summaries reproducing the pre-102nd backward-class wording are outdated.

MCQ 7. Which is one of the President-specified NCST functions under the 2005 Rules?

A. finally deciding individual forest-right titles B. administering Autonomous District Councils C. recommending measures on tribal ownership of minor forest produce D. fixing mineral royalties throughout India

Answer: C.

Option-specific explanations:

- **A:** Forest-right claims are decided under the statutory FRA machinery, not finally by NCST.
- **B:** Autonomous councils operate under constitutional/statutory frameworks; NCST monitors and advises.
- **C:** Minor forest produce ownership is expressly listed in the 2005 Rules.
- **D:** The Rules refer to safeguarding resource rights as provided by law, not tariff-setting power.

Examiner trap 7: Use the exact 2005 Rules; do not convert monitoring functions into administrative control.

MCQ 8. Under Article 338B(7), a report concerning a State matter is forwarded to the:

A. Chief Justice of the High Court B. Governor for optional laying C. President for direct State-legislature laying D. State Government, which causes it to be laid before the State Legislature

Answer: D.

Option-specific explanations:

- **A:** The High Court has no report-routing role under Article 338B(7).
- **B:** The Governor route belongs to Articles 338(7) and 338A(7).
- **C:** The President handles the Union report route but does not directly lay a State report.
- **D:** Article 338B(7) expressly uses the State Government route.

Examiner trap 8: Do not generalise the NCSC/NCST Governor route to NCBC.

MCQ 9. Systemic investigation and monitoring of safeguards appears in:

A. clause (5)(a) of each commission Article B. clause (6), which creates civil-court powers C. clause (8), which creates the commission D. clause (9), which governs annual reports

Answer: A.

Option-specific explanations:

- **A:** Clause (5)(a) is the systemic safeguard-monitoring and evaluation duty.
- **B:** Clause (6) concerns Union report laying and memoranda.
- **C:** Clause (8) supplies evidentiary powers during specified inquiries.
- **D:** Clause (9) concerns consultation on major policy matters.

Examiner trap 9: Separate the substantive duty in clause (5) from the procedural tools in clause (8).

MCQ 10. Inquiry into a specific complaint of deprivation is authorised by:

A. Article 368 B. clause (5)(b) of the relevant commission Article C. Article 342A alone D. the commission's civil-court clause without a complaint duty

Answer: B.

Option-specific explanations:

- **A:** Article 368 governs constitutional amendment.
- **B:** Clause (5)(b) supplies the complaint-inquiry mandate.
- **C:** Article 342A governs SEBC list architecture, not all complaints.
- **D:** Clause (8) supports an already authorised inquiry; it does not create the underlying duty.

Examiner trap 10: Power to gather evidence and authority to inquire must be read together, not conflated.

MCQ 11. Which is an exact civil-court power of the commissions?

A. issuing binding writs B. punishing contempt by imprisonment C. receiving evidence on affidavits D. striking down an unconstitutional rule

Answer: C.

Option-specific explanations:

- **A:** Writ jurisdiction belongs to constitutional courts.
- **B:** No general contempt-imprisonment power is conferred by clause (8).
- **C:** Affidavit evidence is expressly enumerated.
- **D:** Judicial review of rules belongs to courts.

Examiner trap 11: Court-like evidence powers are not constitutional-court remedies.

MCQ 12. Civil-court powers do not authorise a commission to:

A. summon a person from any part of India B. require discovery and production of documents C. requisition a public record D. award an executable decree merely on its recommendation

Answer: D.

Option-specific explanations:

- **A:** Attendance and oath are express clause (8) powers.
- **B:** Document discovery and production are express powers.
- **C:** Public-record requisition is an express power.
- **D:** The commission remains investigative and recommendatory; no decree power follows.

Examiner trap 12: Always state both the evidentiary power and the absent adjudicatory remedy.

MCQ 13. The duty to consult a commission on major policy matters is best understood as:

A. a mandatory process of seeking views, not automatic concurrence B. a power of the commission to enact policy C. an absolute veto over every government decision D. a substitute for legislative approval

Answer: A.

Option-specific explanations:

- **A:** Clause (9) requires consultation while leaving final policy authority with government and legislature.
- **B:** Commissions advise; they do not enact policy.
- **C:** The Constitution does not confer a veto.
- **D:** Consultation cannot replace constitutionally required legislation.

Examiner trap 13: "Shall consult" is stronger than optional hearing but weaker than "shall obtain concurrence".

MCQ 14. The 105th Amendment added to Article 338B(9):

A. a veto for NCBC over every State list B. a proviso excluding Article 342A(3) own-list purposes from that consultation clause C. a requirement that courts approve State lists D. a power for NCBC to determine reservation percentages

Answer: B.

Option-specific explanations:

- **A:** The Amendment did not create an NCBC veto.
- **B:** This proviso accompanies restoration/clarification of State/UT own-list power.
- **C:** No prior judicial approval route was created.
- **D:** Quota design remains outside NCBC's unilateral authority.

Examiner trap 14: The consultation exception is narrow and tied to Article 342A(3).

MCQ 15. Under Article 341(1), initial specification of Scheduled Castes for a State is made by the:

A. State Cabinet by executive order B. NCSC by recommendation C. President by public notification after consulting the Governor D. Parliament by ordinary resolution

Answer: C.

Option-specific explanations:

- **A:** A State executive cannot create the constitutional list.
- **B:** NCSC advice may inform the process but is not the notification.
- **C:** This is the constitutional initial route.
- **D:** Parliament's role under clause (2) is later inclusion or exclusion by law.

Examiner trap 15: Governor consultation does not make the Governor the declaring authority.

MCQ 16. After an SC or ST list has been specified, inclusion or exclusion is made by:

A. the concerned commission B. the President through any later executive order C. the Supreme Court through a declaration D. Parliament by law

Answer: D.

Option-specific explanations:

- **A:** The commissions recommend but cannot amend the list.
- **B:** Clauses 341(2) and 342(2) bar variation by a later notification.
- **C:** Courts review legality but do not use a judgment as the ordinary list-amendment instrument.
- **D:** Parliament alone may later include or exclude by law.

Examiner trap 16: Initial presidential notification and later parliamentary law are separate stages.

MCQ 17. Article 342 concerns:

A. territory-specific specification of Scheduled Tribes B. the Central SEBC List C. the Finance Commission D. minority educational institutions

Answer: A.

Option-specific explanations:

- **A:** Article 342 is the ST-list provision and supports State/UT-specific status.
- **B:** Article 342A governs SEBC lists.
- **C:** Article 280 creates the Finance Commission.
- **D:** Articles 29-30 concern minority cultural and educational rights.

Examiner trap 17: A community's ST status in one State does not automatically carry to another.

MCQ 18. The 2024 UPSC proposition that a community declared ST in one State need not be ST in another is:

A. incorrect because ST status is national B. correct because Article 342 lists are territorial C. correct only if NCST approves D. incorrect after the 89th Amendment

Answer: B.

Option-specific explanations:

- **A:** Article 342 is State/UT-specific, not one undifferentiated national declaration.
- **B:** Territorial specificity makes the proposition correct.
- **C:** NCST approval is not the constitutional test.
- **D:** The 89th Amendment created NCST but did not erase territorial lists.

Examiner trap 18: Do not confuse a centrally issued notification with territorially uniform status.

MCQ 19. After the 105th Amendment, the Central List of SEBCs is governed principally by:

A. Article 341 B. Article 342 C. Article 342A(1)-(2) D. Article 338B(8)

Answer: C.

Option-specific explanations:

- **A:** Article 341 concerns Scheduled Castes.
- **B:** Article 342 concerns Scheduled Tribes.
- **C:** Clauses (1)-(2) control the Central List for Central Government purposes.
- **D:** Article 338B(8) concerns civil-court powers.

Examiner trap 19: The Central List route and State own-list route occupy different clauses of Article 342A.

MCQ 20. A State or Union territory may prepare and maintain its own SEBC list for its own purposes under:

A. Article 338B(7) B. Article 341(2) C. Article 342A(2) D. Article 342A(3)

Answer: D.

Option-specific explanations:

- **A:** Clause (7) governs State-related NCBC reports.
- **B:** Article 341(2) concerns parliamentary variation of SC lists.
- **C:** Clause (2) concerns parliamentary alteration of the Central SEBC List.
- **D:** Clause (3), inserted by the 105th Amendment, supplies own-list power by law.

Examiner trap 20: A State list may differ from the Central List; neither automatically controls the other's purposes.

MCQ 21. Article 366(26C) functions as:

A. the constitutional definition bridge for socially and educationally backward classes B. a commission appointment clause C. the SC-list amendment route D. a reservation-percentage ceiling

Answer: A.

Option-specific explanations:

- **A:** It links the defined class to Article 342A for the relevant Central or State/UT purpose.
- **B:** Appointments are governed by Article 338B(3).
- **C:** SC-list change is governed by Article 341(2).
- **D:** The clause defines a class; it does not fix a quota percentage.

Examiner trap 21: A definition clause does not itself allocate reservation benefits.

MCQ 22. The pre-2018 statutory NCBC was created under the:

A. Protection of Human Rights Act, 1993 B. National Commission for Backward Classes Act, 1993 C. Scheduled Castes and Scheduled Tribes Act, 1989 D. Constitution (Eighty-ninth Amendment) Act, 2003

Answer: B.

Option-specific explanations:

- **A:** That Act created NHRC and State Human Rights Commissions.
- **B:** This Act implemented the permanent-body direction following Indra Sawhney.
- **C:** The PoA Act concerns specified offences and Special Courts.
- **D:** The 89th Amendment separated NCSC and NCST.

Examiner trap 22: The statutory NCBC and the constitutional NCBC have connected history but different legal sources.

MCQ 23. The central institutional direction in Indra Sawhney (1992) relevant here was to:

A. create NCSC under Article 338 B. permit SC sub-classification C. establish a permanent body for backward-class inclusion/over-inclusion/under-inclusion complaints D. restore State list power under Article 342A(3)

Answer: C.

Option-specific explanations:

- **A:** NCSC's roots lie in Article 338 and the 65th/89th Amendments.
- **B:** SC sub-classification was decided in Davinder Singh, not Indra Sawhney.
- **C:** This direction led to the 1993 NCBC statute.
- **D:** Article 342A did not exist in 1992.

Examiner trap 23: Indra Sawhney is relevant to NCBC's institutional origin, not a source of Article 338B.

MCQ 24. The 102nd Amendment did NOT:

A. insert Article 338B B. insert Article 342A C. insert Article 366(26C) D. restore explicit State/UT own-list power under Article 342A(3)

Answer: D.

Option-specific explanations:

- **A:** Article 338B constitutionalised NCBC.
- **B:** Original Article 342A was part of the 102nd architecture.
- **C:** The SEBC definition clause was inserted by the 102nd.
- **D:** The 105th Amendment, not the 102nd, supplied explicit clause (3) own-list power.

Examiner trap 24: Separate what the 102nd created from what the 105th corrected or clarified.

MCQ 25. The majority in Jaishri Laxmanrao Patil (2021) interpreted the original 102nd-Amendment scheme as:

A. displacing State power to identify SEBCs, prompting the 105th response B. abolishing NCBC C. allowing NCSC to alter SC lists D. making every reservation above fifty per cent valid

Answer: A.

Option-specific explanations:

- **A:** The majority reading of Article 342A centralised identification and triggered legislative response.
- **B:** The judgment did not abolish Article 338B.
- **C:** SC-list alteration remains under Article 341.
- **D:** The Maratha reservation failed; the judgment did not remove the ceiling wholesale.

Examiner trap 25: Keep the SEBC-identification holding distinct from the separate Maratha ceiling analysis.

MCQ 26. The constitutional purpose of the 105th Amendment was principally to:

A. make NCBC recommendations binding B. restore/clarify State and UT power to maintain own SEBC lists C. transfer SC-list power to Governors D. constitutionalise NHRC

Answer: B.

Option-specific explanations:

- **A:** No general binding-force clause was added.
- **B:** Article 342A(3) and connected changes re-established the dual-list position.
- **C:** Articles 341-342 were not transferred to Governors.
- **D:** NHRC remains statutory.

Examiner trap 26: The Amendment concerns identification competence, not reservation percentages or automatic validity.

MCQ 27. State of Punjab v Davinder Singh (2024) held that:

A. States may delete castes from the Article 341 list B. all creamy-layer observations formed one unanimous ratio C. evidence-based sub-classification within Scheduled Castes is constitutionally permissible in principle D. NCSC must approve every sub-classification statute

Answer: C.

Option-specific explanations:

- **A:** Sub-classification cannot alter the Presidential List.
- **B:** Creamy-layer observations appeared in separate opinions and must be distinguished from the binding ratio.
- **C:** The seven-judge Bench overruled E.V. Chinnaiah on the sub-classification issue.
- **D:** The judgment did not create an NCSC veto.

Examiner trap 27: Distribution within a list is not deletion from or alteration of the list.

MCQ 28. Which statement correctly distinguishes related cases?

A. Jarnail Singh created NCBC B. Janhit Abhiyan decided Article 342A State lists C. E.V. Chinnaiah upheld sub-classification and remains controlling D. Jarnail Singh concerns promotion/creamy-layer doctrine; Janhit Abhiyan concerns EWS; neither enlarges commission powers

Answer: D.

Option-specific explanations:

- **A:** NCBC's statutory origin followed Indra Sawhney.
- **B:** Janhit Abhiyan upheld the 103rd-Amendment EWS framework.
- **C:** Davinder Singh overruled E.V. Chinnaiah on SC sub-classification.
- **D:** This accurately confines the cross-links and preserves institutional boundaries.

Examiner trap 28: Citing a reservation case does not transfer the court's doctrine into a commission's jurisdiction.

MCQ 29. NCSC's role regarding offences under the PCR and SC/ST PoA framework is best described as:

A. monitoring safeguards, inquiring into complaints and recommending action B. registering every FIR itself C. conducting criminal trials D. sentencing convicted offenders

Answer: A.

Option-specific explanations:

- **A:** Article 338 supports monitoring and inquiry across relevant safeguards.
- **B:** Police register and investigate criminal cases under law.
- **C:** Special/competent courts conduct trials.
- **D:** Sentencing is a judicial function.

Examiner trap 29: Monitoring criminal-law safeguards is not criminal-process control.

MCQ 30. NCST's relationship with PESA and forest-rights administration is:

A. it directly administers every Gram Sabha B. it monitors/advises on safeguards but does not finally decide statutory claims C. it replaces Governors' Fifth Schedule functions D. it fixes all minor-mineral concessions

Answer: B.

Option-specific explanations:

- **A:** PESA assigns powers through State law and Gram Sabha/Panchayat institutions.
- **B:** This preserves the commission's oversight role and the statutory decision route.
- **C:** Article 338A does not transfer Fifth Schedule administration to NCST.
- **D:** Resource concessions remain governed by applicable law and competent authorities.

Examiner trap 30: The 2005 additional functions broaden scrutiny, not executive administration.

MCQ 31. Which comparison is correct?

A. NHRC and NCBC are both constitutional B. State commissions derive automatically from Articles 338-338B C. NCSC/NCST/NCBC are constitutional; NHRC, NCW, NCM and NCPDR are statutory D. Courts and commissions issue the same remedies

Answer: C.

Option-specific explanations:

- **A:** NHRC is created by the Protection of Human Rights Act, 1993.
- **B:** State commissions depend on State laws or other applicable frameworks, not automatic creation by these Union Articles.

- **C:** This is the correct source-of-authority distinction.
- **D:** Courts adjudicate binding remedies; commissions investigate and recommend.

Examiner trap 31: Constitutional versus statutory status does not by itself answer the separate remedies question.

MCQ 32. Which reform best respects the commissions' constitutional design?

A. placing all three under NHRC B. allowing recommendations to amend lists automatically C. replacing specialist bodies with one ministry cell D. transparent appointments, accessible intake, shared referral/data standards and tracked government responses

Answer: D.

Option-specific explanations:

- **A:** A statutory umbrella cannot simply subordinate constitutional commissions.
- **B:** List alteration must follow Articles 341, 342 or 342A.
- **C:** An executive cell would reduce independence and visibility.
- **D:** This strengthens capacity and coordination without creating parallel courts.

Examiner trap 32: Match reform to the actual weakness: access, evidence, capacity and follow-up.

PYQS AND ANSWER PRACTICE

Audited PYQ routing and key discipline

- Four direct Mains demands are retained from locally audited official-paper wording: 2018 GS-II Q2 and Q16, 2020 GS-II Q15, and 2022 GS-II Q5.
- The direct 2023 objective item is retained without an official answer letter because the final official key is not held in the audited local source set.
- The adjacent 2024 Article 342 item carries the locally held official Set-A key.
- Descriptive papers have no official model-answer key; the answers below are examiner-oriented models, not official answers.

Verified PYQ 1 - UPSC GS-II 2018, Q2 - 10 marks, 150 words

Whether National Commission for Scheduled Castes (NCSC) can enforce the implementation of constitutional reservation for the Scheduled Castes in the religious minority institutions? Examine.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (119 words):

NCSC cannot itself enforce SC reservation in religious-minority educational institutions.

Article 338 authorises NCSC to monitor safeguards, inquire into deprivation complaints, advise government and report recommendations. Clause (8) supplies evidence-gathering powers, not a decree-enforcement jurisdiction. Article 15(5), while enabling special provisions for SEBCs and SCs/STs in admissions, expressly excludes minority educational institutions protected by Article 30(1).

NCSC may seek records, investigate discrimination outside legitimate minority autonomy, recommend corrective policy and expose non-compliance through reports. It cannot create a reservation obligation where the constitutional text excludes such institutions, nor execute its view like a court.

Thus, NCSC has investigative and persuasive authority; enforceable reservation must arise from valid constitutional and statutory authority, subject to the minority-institution limitation.

Verified PYQ 2 - UPSC GS-II 2018, Q16 - 15 marks, 250 words

Multiplicity of various commissions for the vulnerable sections of the society leads to problems of overlapping jurisdiction and duplication of functions. Is it better to merge all commissions into an umbrella Human Rights Commission? Argue your case.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (175 words):

Overlap among rights commissions is real, but wholesale merger is not the best remedy.

An umbrella arrangement could simplify intake, reduce forum-shopping, share regional infrastructure and create common data and follow-up standards. Intersectional complaints often cross caste, tribe, gender and human-rights mandates.

However, NCSC, NCST and NCBC possess distinct constitutional foundations under Articles 338, 338A and 338B. NCST's officially specified functions concerning land, forests, displacement, resources and PESA require tribal expertise; NCSC addresses untouchability, atrocity and service safeguards; NCBC also operates within the Central/State SEBC-list architecture. NHRC is itself statutory and recommendatory. Placing constitutional specialists beneath it would create authority conflicts and could dilute access and constituency knowledge.

Merger would also not cure vacancies, inadequate research, delayed reports or weak government follow-up. A better model is coordinated specialisation: common digital and offline intake, reasoned referral, joint inquiry where mandates overlap, interoperable regional offices, shared data standards and recommendation-wise response dashboards.

Therefore, rationalising statutory duplication may be justified, but constitutional specialists should remain distinct. Coordination can secure efficiency without sacrificing entrenched mandates and group-specific accountability.

Verified PYQ 3 - UPSC GS-II 2020, Q15 - 15 marks, 250 words

Which steps are required for constitutionalization of a Commission? Do you think imparting constitutionality to the National Commission for Women would ensure greater gender justice and empowerment in India? Give reasons.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (178 words):

Constitutionalisation requires an Article 368 amendment, not merely amendment of the existing NCW Act.

Parliament would need to insert a constitutional provision defining the body's existence, composition, appointment, tenure framework, duties, reporting route, inquiry powers and consultation role. The Bill must obtain the prescribed special majority; State ratification is needed only if the proposal touches a matter in the Article 368 proviso. Consequential legislation and rules must reconcile the NCW Act, service conditions and procedure.

Constitutional status could help. The Articles 338-338B model shows that entrenchment increases institutional continuity; President-to-Parliament reporting compels an action memorandum and reasons for rejecting recommendations; and consultation can bring gender impact into major policy design.

Yet status is insufficient. Existing constitutional commissions remain recommendatory. Civil-court powers collect evidence but do not punish. Executive-led appointments, vacancies, limited regional access, weak data, delayed reports and poor follow-up may persist. Gender justice also depends on police, courts, labour administration, health, education, budgets and local institutions.

Therefore, constitutionalisation can strengthen permanence and accountability, but empowerment requires transparent appointments, adequate capacity, accessible complaint systems and time-bound governmental response.

Verified PYQ 4 - UPSC GS-II 2022, Q5 - 10 marks, 150 words

Discuss the role of the National Commission for Backward Classes in the wake of its transformation from a statutory body to a constitutional body.

Demand route: Identify the governing Article or amendment, explain institutional effect, state the legal limit, and conclude directly.

Model answer (116 words):

The 102nd Amendment transformed NCBC from a specialised statutory list adviser into a broader constitutional safeguard commission.

Following Indra Sawhney (1992), the NCBC Act, 1993 created a permanent body mainly for inclusion, exclusion and over/under-inclusion questions. In 2018, Article 338B added monitoring of all SEBC safeguards, complaint inquiry, development advice and evaluation, reports to the President, recommendations and major-policy consultation. Article 342A created the connected list architecture.

Constitutionalisation therefore increased permanence, mandate breadth and legislative visibility. However, NCBC remains recommendatory, not a court or unilateral list-maker. The 105th Amendment later clarified separate State/UT own-list power under Article 342A(3).

Its practical contribution depends on credible data, accessible hearings, timely reports and reasoned government follow-up.

Verified PYQ 5 - UPSC Prelims 2023, Q35

Consider the following organizations/bodies in India: 1. The National Commission for Backward Classes 2. The National Human Rights Commission 3. The National Law Commission 4. The National Consumer Disputes Redressal Commission How many of the above are constitutional bodies? A. Only one B. Only two C. Only three D. All four

Official-key discipline: The final official key is not held in the audited local source set; no option letter is presented as an official answer.

Concept resolution: NCBC is constitutional under Article 338B. NHRC and NCDRC are statutory; the Law Commission is constituted by executive resolution. The constitutional-body count is one.

Verified PYQ 6 - UPSC Prelims 2024, Q84

Consider the following statements: 1. It is the Governor of the State who recognizes and declares any community of that State as a Scheduled Tribe. 2. A community declared as a Scheduled Tribe in a State need not be so in another State. Which of the statements given above is/are correct? A. 1 only B. 2 only C. Both 1 and 2 D. Neither 1 nor 2

Official Set-A key: B.

Explanation: Article 342 assigns initial specification to the President by public notification, after Governor consultation where a State is concerned. ST status is territorial, so statement 2 alone is correct.

ORIGINAL MAINS PRACTICE - EXACTLY SIX MODELS

Original Mains 1 - 10 marks, 150 words

Question: "Civil-court powers do not make NCSC, NCST and NCBC courts." Explain.

Model answer (116 words):

Articles 338(8), 338A(8) and 338B(8) confer selected civil-court powers only while the commissions investigate safeguards or inquire into complaints. They can summon persons from any part of India, examine them on oath, require documents, receive affidavits, requisition public records and issue commissions for witness or document examination.

These powers prevent an inquiry from depending on voluntary cooperation and improve the evidentiary basis of recommendations. However, the commissions cannot, merely under clause (8), convict, sentence, award executable damages, strike down law or finally determine legal rights. Courts and statutory enforcement authorities retain those functions.

Thus, the commissions are constitutional investigative, advisory and recommendatory bodies equipped with court-like procedure, not courts with plenary adjudicatory remedies.

Original Mains 2 - 10 marks, 150 words

Question: Examine how the reporting clauses of Articles 338, 338A and 338B create legislative accountability.

Model answer (117 words):

The reporting clauses convert specialist findings into an answerable constitutional record.

Each commission submits annual and other reports to the President. Under clause (6), Union-related material is laid before both Houses with a memorandum stating action taken or proposed and reasons for rejecting recommendations. For State matters, Articles 338(7) and 338A(7) route reports through the Governor; Article 338B(7) uses the State Government, which causes legislative laying.

This process enables legislators and committees to compare finding, response and justification. Its force is transparency and political scrutiny, not automatic implementation.

Accountability weakens when submission, laying, memoranda or follow-up are delayed. Therefore, recommendation-wise tracking and timely legislative scrutiny are needed to convert formal reporting into practical correction.

Original Mains 3 - 15 marks, 250 words

Question: Compare the constitutional design and distinctive domains of NCSC, NCST and NCBC.

Model answer (194 words):

Articles 338, 338A and 338B use a common institutional design for different terrains of disadvantage.

Each commission has a Chairperson, Vice-Chairperson and three Members appointed by Presidential warrant. Each regulates procedure, monitors safeguards, inquires into complaints, advises and evaluates development, reports and recommends, exercises specified civil-court powers during inquiry, and is normally consulted on major policy.

NCSC focuses on SC safeguards including untouchability, discrimination, representation, services and the working of PCR/PoA protections. It monitors but does not investigate crimes or conduct trials.

NCST addresses tribal disadvantage rooted in territory and resources. The 2005 Rules specifically add minor forest produce, minerals and water as provided by law, livelihoods, displacement, land alienation, forest participation, PESA and shifting cultivation. It does not administer Scheduled Areas or decide FRA titles.

NCBC evolved from the 1993 statutory list adviser into a broad SEBC safeguard commission under the 102nd Amendment. Its distinctive setting includes Central and State SEBC lists under Article 342A; after the 105th Amendment, clause 338B(9) consultation does not apply to Article 342A(3) own-list purposes.

The bodies are therefore constitutional peers, but specialist evidence and institutional interfaces differ. None is a court or final list-maker.

Original Mains 4 - 15 marks, 250 words

Question: Explain the constitutional routes for specifying SCs, STs and SEBCs. What role do the national commissions play?

Model answer (193 words):

The Constitution separates expert advice from the final legal act of specification.

For Scheduled Castes, Article 341 authorises the President, after consulting the Governor where a State is concerned, to specify communities by public notification. Parliament alone may later include or exclude by law. Article 342 creates the parallel, territory-specific route for Scheduled Tribes.

For socially and educationally backward classes, post-105th Article 342A creates two tracks. Clauses (1)-(2) govern the Central List for Central Government purposes: Presidential specification and parliamentary variation. Clause (3) permits every State or Union territory, by law, to prepare and maintain its own list for its own purposes; that list may differ from the Central List. Article 366(26C) supplies the definition bridge.

NCSC, NCST and NCBC can investigate safeguards, receive representations, compel evidence and recommend inclusion-related or protective measures within their mandates. Their reports may inform executive and legislative processing.

However, a commission recommendation is not the final inclusion instrument. Nor do caste-certificate authorities alter constitutional lists. Davinder Singh (2024) further distinguishes list identity from evidence-based internal distribution of SC reservation benefits.

Thus, commissions provide evidence and accountability; the Constitution assigns final specification to identified legal authorities.

Original Mains 5 - 20 marks, 250 words

Question: Trace the amendment-and-case trajectory that shaped the present NCSC, NCST and NCBC architecture.

Model answer (205 words):

Original Article 338 created a Special Officer for SCs and STs to investigate safeguards and report to the President. The 65th Amendment (1990; operational commission from 12 March 1992) replaced that officer with a multi-member combined NCSC/ST. The 89th Amendment (2003; effective 19 February 2004) amended Article 338 and inserted Article 338A, separating NCSC and NCST.

Backward-class institutional history followed another path. Indra Sawhney (1992) directed a permanent body for inclusion and over/under-inclusion complaints, leading to the NCBC Act, 1993. The 102nd Amendment (2018) inserted Article 338B, Article 342A and Article 366(26C), creating constitutional NCBC and a new SEBC-list framework.

In Jaishri Laxmanrao Patil (2021), the majority interpreted the original Article 342A scheme as displacing State identification power. The 105th Amendment responded by expressly recognising State/UT own lists under Article 342A(3), adjusting Article 366(26C) and exempting that purpose from Article 338B(9) consultation.

Davinder Singh (2024) addressed a different question: internal SC sub-classification. It overruled E.V. Chinnaiah on that issue and permitted evidence-based sub-classification without changing the Article 341 list. Creamy-layer observations in concurrences must not be presented as the unanimous ratio.

The trajectory shows specialisation, constitutionalisation and federal correction, while leaving commissions recommendatory rather than reservation-granting authorities.

Original Mains 6 - 20 marks, 250 words

Question: Constitutional status is necessary but insufficient for effective social-justice commissions. Evaluate and suggest reforms.

Model answer (203 words):

Constitutional status gives NCSC, NCST and NCBC permanence, a nationally recognised mandate, Presidential appointment, procedure-regulating power, compulsory evidence tools, major-policy consultation and reports linked to legislatures. These features raise visibility and the political cost of silent governmental inaction.

Yet effectiveness depends on the full accountability chain. Executive-led selection may reduce perceived independence; vacancies and limited regional staff restrict access; fragmented case management obscures delay; weak disaggregated data produces generic recommendations; and late report laying or formulaic action memoranda weakens follow-up. Persons facing caste, tribal, gender, disability or geographic disadvantage may also encounter intersectional barriers and digital exclusion.

Reform should therefore be institutional, not rhetorical: publish eligibility and selection criteria; maintain a vacancy calendar; strengthen professional investigation and research cadres; provide multilingual regional, mobile and offline complaint channels; adopt privacy-protective case tracking; create common referral and joint-inquiry protocols among commissions; and require recommendation-wise, time-bound government responses followed by

legislative-committee scrutiny.

Blanket binding power is not an easy cure. It could blur administration and adjudication unless jurisdiction, procedure, appeal and competence are carefully designed. Courts and enforcement agencies must retain their legal roles.

Thus, the sound objective is stronger independent evidence, accessible process and accountable response-not conversion of commissions into parallel governments or courts.

OPTIONAL ADVANCED DEPTH - NOT REQUIRED FOR A CORE ANSWER

ADVANCED UNIT 1 - CONSTITUTIONALISATION VERSUS CAPACITY

VISUAL FIRST

Constitutional gain	Capacity condition
permanence	timely appointments
report visibility	prompt laying and scrutiny
compulsory evidence	trained investigators
consultation	early access to policy material
specialist mandate	regional and intersectional access

DEFINITION

Constitutionalisation entrenches institutional existence and accountability routes; it does not guarantee administrative performance.

ANSWER LINE

The 102nd-Amendment lesson is that status can broaden mandate and visibility, but capacity and response determine whether constitutional voice becomes material protection.

KEYWORDS

entrenchment | operational independence | response gap | capacity | implementation

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

- **Claim:** Constitutional status changes the accountability framework.
- **Named evidence:** Article 338B replaced the 1993 statutory scheme with constitutional reporting and consultation.
- **Analysis:** Government must engage a constitutionally visible record rather than a merely departmental advisory process.
- **Qualification:** No general binding-remedy clause, protected budget or self-executing recommendation follows automatically.

EVIDENCE / TRAP / MAINS USE / RECAP

- **Evidence:** Compare the 1993 Act's inclusion focus with Article 338B(5)-(9).
- **Trap:** "On par" refers to constitutional design, not identical subject matter or outcomes.
- **Mains use:** Constitutionalising NCW or evaluating NCBC after 2018.
- **Recap:** Entrenchment raises the floor; capacity determines performance.

ADVANCED UNIT 2 - SUB-CLASSIFICATION, CREAMY LAYER AND CASE BOUNDARIES

VISUAL FIRST

IDENTIFICATION OF CLASS -> Articles 341/342/342A
VALIDITY OF RESERVATION -> Articles 14-16 + controlling cases
DISTRIBUTION WITHIN SC LIST -> Davinder Singh (2024)
PROMOTION/CREAMY-LAYER CROSS-LINK -> Jarnail Singh
EWS CROSS-LINK -> Janhit Abhiyan
COMMISSION POWER -> monitor/advise/report, not grant quota

DEFINITION

Case-boundary discipline assigns each judgment to the precise constitutional question it decided.

ANSWER LINE

The safest reservation analysis begins by separating list identity, eligibility, quantum, promotion and internal distribution before assigning any role to a commission.

KEYWORDS

binding ratio | concurring opinion | sub-classification | quantifiable data | list integrity

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

- **Claim:** *Davinder Singh* permits differentiated distribution without rewriting the Article 341 list.
- **Named evidence:** The seven-judge decision overruled *E.V. Chinnaiah* on sub-classification.
- **Analysis:** Equality may require attention to unequal benefit capture within a listed class.
- **Qualification:** Creamy-layer comments in separate opinions are not one unanimous holding; commission approval was not made a constitutional prerequisite.

EVIDENCE / TRAP / MAINS USE / RECAP

- **Evidence:** *Jarnail Singh* is relevant to promotion/creamy-layer doctrine; *Janhit Abhiyan* concerns EWS.
- **Trap:** A case about reservation design does not enlarge Articles 338-338B.
- **Mains use:** Use only a bounded cross-link in a commission answer.
- **Recap:** Identify the question, holding, institutional actor and limit.

ADVANCED UNIT 3 - COORDINATED SPECIALISATION AND INTERSECTIONAL ACCESS

VISUAL FIRST

ONE COMPLAINT
|-- caste discrimination -> NCSC
|-- tribal land/displacement -> NCST
|-- SEBC safeguard/list issue -> NCBC
|-- broader human-rights issue -> NHRC
|-- binding remedy -> competent authority/court
 \-> shared intake + referral + joint evidence where lawful

DEFINITION

Coordinated specialisation preserves constitutional mandates while reducing the access cost of overlapping jurisdiction.

ANSWER LINE

Intersectionality is an argument for interoperable institutions, not necessarily for erasing specialist constitutional bodies.

KEYWORDS

single-window intake | reasoned referral | joint inquiry | interoperability | intersectionality

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

- **Claim:** Shared process can coexist with separate constitutional identity.
- **Named evidence:** The 2018 umbrella-commission PYQ contrasts overlap with specialist mandates.

- **Analysis:** A common front door and data standard can help a complainant without collapsing expertise.
- **Qualification:** Referral must preserve limitation periods, privacy, consent and the receiving body's lawful jurisdiction.

EVIDENCE / TRAP / MAINS USE / RECAP

- **Evidence:** NCST's 2005 functions demonstrate why specialist knowledge matters.
- **Trap:** Coordination does not create hierarchy under a statutory body.
- **Mains use:** Offer coordinated specialisation as the balanced reform.
- **Recap:** Integrate access and evidence; preserve mandate and remedy boundaries.

ADVANCED UNIT 4 - DATA, REPORTING AND DELIBERATIVE SANCTION

VISUAL FIRST

Evidence stage	Failure risk	Advanced reform
complaint intake	exclusion and duplication	multilingual assisted filing
inquiry	weak or incomparable records	common evidence protocols
analysis	aggregate data hides intersectionality	disaggregated lawful datasets
recommendation	generic drafting	responsible-authority and deadline fields
response	formulaic memorandum	reasons and implementation evidence
scrutiny	delayed legislative attention	committee calendar and dashboard

DEFINITION

Deliberative sanction is the pressure created by public reasons, legislative scrutiny and verifiable follow-up even where a recommendation is not binding.

ANSWER LINE

For recommendatory commissions, institutional force lies in the quality of evidence and the public cost imposed on an unexplained refusal.

KEYWORDS

reason-giving | action memorandum | disaggregated data | case lifecycle | deliberative sanction

CLAIM -> NAMED EVIDENCE -> ANALYSIS -> QUALIFICATION

- **Claim:** Better reporting can increase practical authority without formal adjudication.
- **Named evidence:** Clauses (6)-(7) require action taken/proposed and reasons for non-acceptance.
- **Analysis:** Recommendation-wise scrutiny lets legislatures distinguish disagreement from neglect.
- **Qualification:** Transparency must protect complainant identity and sensitive community data.

EVIDENCE / TRAP / MAINS USE / RECAP

- **Evidence:** The constitutional report chain already contains the foundation for structured follow-up.
- **Trap:** A dashboard count without period and definition is not reliable evidence.
- **Mains use:** Link accountability reform to the existing constitutional mechanism.
- **Recap:** Evidence quality plus public reasons can strengthen a non-binding institution.

CONSOLIDATED REGISTER NOTES

Constitutional identity and common design

- **NCSC**: Article 338; **NCST**: Article 338A; **NCBC**: Article 338B.
- Each present commission: Chairperson + Vice-Chairperson + three other Members.
- President appoints by warrant under hand and seal.
- Service conditions and tenure are rule-based, subject to parliamentary law.
- 2004 NCSC/NCST rules and 2018 NCBC rules: three years; maximum two terms.
- Each commission regulates its own procedure.
- Constitutional status gives entrenchment and report visibility, not judicial status.

Evolution rail

Original Article 338 -> Special Officer for SCs/STs
1978/1987 -> non-statutory multi-member advisory commission
65th Amendment 1990 -> combined constitutional NCSC/ST
12 March 1992 -> first combined constitutional commission
89th Amendment 2003 -> Article 338 revised + Article 338A inserted
19 February 2004 -> separate NCSC and NCST operational
Indra Sawhney 1992 -> permanent backward-class body direction
NCBC Act 1993 -> statutory NCBC
102nd Amendment 2018 -> Articles 338B, 342A, 366(26C); constitutional NCBC
105th Amendment 2021 -> State/UT own SEBC lists under Article 342A(3)

Clause map for Articles 338, 338A and 338B

Clause	Meaning
(1)	creates the relevant commission
(2)	five-person composition; service/tenure framework
(3)	Presidential appointment by warrant
(4)	commission regulates procedure
(5)	six duties
(6)	Union report laid before Parliament with memorandum
(7)	State report route and State-legislature memorandum
(8)	civil-court powers during investigation/inquiry
(9)	consultation on major policy

Six duties

1. investigate and monitor constitutional, legal and governmental safeguards;
2. inquire into specific deprivation complaints;
3. participate and advise in socio-economic development planning;
4. evaluate development progress;
5. submit annual/other reports and recommend measures; and
6. perform other President-specified functions, subject to parliamentary law.

Civil-court evidence toolkit

summon + oath | discovery/production | affidavits | public records | evidentiary commissions | other prescribed matter

- Available only for clause (5)(a) investigation or clause (5)(b) complaint inquiry.
- No conviction, sentence, executable damages, writ, law-striking or final list order.
- "Issuing commissions" concerns examination of witnesses/documents.

Reporting and consultation

Union: Commission -> President -> Parliament + action memorandum + rejection reasons

State: NCSC/NCST -> Governor -> State Legislature + memorandum

State: NCBC -> State Government -> State Legislature + memorandum

- Consultation on major policy is mandatory process, not concurrence or veto.
- Article 338B(9) does not apply for Article 342A(3) own-list purposes.
- Submission, laying, scrutiny and implementation are distinct.

Commission-specific domains

Body	High-yield domain	Boundary
NCSC	untouchability, equality, services, representation, PCR/PoA safeguards	not police, prosecutor or court
NCST	land, MFP, resources, livelihood, displacement, forests, PESA	not Scheduled-Area/FRA administrator
NCBC	SEBC safeguards and Central/State list context	not final list-maker or quota authority

NCST 2005 source-labelled functions: minor forest produce ownership; mineral/water rights as provided by law; viable livelihoods; displacement relief/rehabilitation; prevention and rehabilitation of land alienation; tribal participation in forest protection/social afforestation; full PESA implementation; reduction and eventual elimination of disempowering shifting cultivation.

NCBC before and after 2018

Statutory NCBC, 1993	Constitutional NCBC, Article 338B
arose after Indra Sawhney	arose through 102nd Amendment
inclusion/exclusion focus	all safeguards + complaints + development
statutory reporting	constitutional President/legislature route
civil-court tools already present	tools constitutionally entrenched
specialist adviser	broader constitutional watchdog

List specification

Group/list	Initial or constitutive route	Later variation
SC, Article 341	President by public notification; Governor consulted for State	Parliament by law
ST, Article 342	President by public notification; Governor consulted for State	Parliament by law
Central SEBC, Article 342A(1)-(2)	President for Central purposes	Parliament by law
State/UT SEBC, Article 342A(3)	State/UT by law for own purposes	own lawful process

- SC/ST status is territory-specific.
- Article 366(26C) defines SEBC through the applicable Article 342A list.

- Commission advice, certificate administration and reservation percentage are separate questions.

Amendment and judgment control

- **Indra Sawhney (1992)**: permanent body for backward-class inclusion/over-/under-inclusion complaints; 50% ceiling doctrine is a reservation cross-link, not commission power.
- **Jaishri Laxmanrao Patil (2021)**: majority read original Article 342A as displacing State identification; Maratha ceiling analysis is separate.
- **105th Amendment (2021)**: explicit State/UT own-list power; connected changes to Articles 338B(9), 342A and 366(26C).
- **Davinder Singh (2024)**: evidence-based SC sub-classification permissible; *E.V. Chinniah* overruled on that issue; no alteration of Article 341 list.
- **Creamy layer**: concurring observations in *Davinder Singh* are not one unanimous ratio; *Jarnail Singh* is a bounded promotion cross-link.
- **Janhit Abhiyan**: EWS cross-link only.

Institutional distinctions

Commission monitors/advises | Ministry implements | police/prosecutor enforces | court adjudicates | legislature changes law/list

- NHRC, NCW, NCM and NCPCR are statutory.
- State commissions are territorial complements under State-specific law/framework.
- Coordinated intake and referral are preferable to indiscriminate merger.

Independence, access and reform

- Strengths: constitutional entrenchment, Presidential appointment, procedure control, evidence powers, consultation and public reporting.
- Risks: executive-led appointments, vacancies, staff/resource dependence, weak regional reach, inaccessible complaint systems, fragmented data, delayed reports and poor follow-up.
- Intersectionality: preserve multilingual, assisted, offline and disability-accessible routes.
- Reforms: public criteria; vacancy calendar; professional investigation/research; privacy-safe case tracking; joint inquiry/referral protocols; recommendation-wise action memoranda; legislative committee scrutiny.
- Blanket binding power requires clear jurisdiction, procedure, appeal and constitutional competence.

Prelims traps

1. Present commission = five; historical 65th-Amendment combined body = seven.
2. 89th Amendment year 2003; operational separation 19 February 2004.
3. 102nd constitutional NCBC commenced 15 August 2018.
4. 105th own-list architecture commenced 15 September 2021.
5. Article 338(10) now retains Anglo-Indian reference, not OBCs.
6. Clause (8) is procedural and inquiry-specific.
7. NCSC/NCST State route uses Governor; NCBC uses State Government.
8. Consultation is not consent.
9. NCST monitors PESA/FRA-related safeguards; it does not administer claims.
10. Commissions do not amend SC/ST/SEBC lists.
11. Central and State SEBC lists may differ.
12. Sub-classification concerns distribution, not list deletion.

Mains answer spine

DEFINE COMMISSION + ARTICLE
|
TRACE ORIGIN / AMENDMENT
|
STATE EXACT FUNCTION, POWER OR LIST ROUTE
|
ADD NAMED RULE / REPORT CLAUSE / CASE
|
EXPLAIN ACCOUNTABILITY EFFECT
|
QUALIFY: ADVISORY, NOT COURT OR LIST-MAKER
|
ADD CAPACITY / ACCESS / FOLLOW-UP REFORM
|
GRADED CONCLUSION

Complete topic ASCII master flow diagram

ASCII MASTER FLOW - PANEL 1/12: CONCEPT AND ROLE

Articles 338, 338A and 338B create specialist constitutional watchdogs.
Core cycle: monitor safeguards -> inquire complaints -> advise/evaluate -> report/recommend.
They are investigative, advisory and recommendatory; courts and governments retain binding remedies.
Answer line: constitutional visibility is not self-executing enforcement.

ASCII MASTER FLOW - PANEL 2/12: HISTORY AND AMENDMENTS

Original Article 338: President-appointed Special Officer for SCs/STs.
65th Amendment 1990: combined multi-member NCSC/ST; first commission 12 Mar 1992.
89th Amendment 2003: amended 338 + inserted 338A; separate bodies from 19 Feb 2004.
1993 statutory NCBC -> 102nd Amendment 2018 constitutional NCBC -> 105th Amendment 2021 State/UT own SEBC lists.

ASCII MASTER FLOW - PANEL 3/12: ARTICLES 338 / 338A / 338B

338 = NCSC; 338A = NCST; 338B = NCBC.
Clauses (1)-(4): creation, five-person composition, Presidential warrant, own procedure.
Clauses (5)-(9): duties, reports, civil-court tools and major-policy consultation.
Article 338(10) now extends only to the Anglo-Indian community.

ASCII MASTER FLOW - PANEL 4/12: COMPOSITION AND TENURE

Each: Chairperson + Vice-Chairperson + three other Members = five.
President appoints by warrant under hand and seal.
Service conditions and tenure come from Presidential rules subject to parliamentary law.
2004 NCSC/NCST and 2018 NCBC rules: three-year term; no more than two terms.

ASCII MASTER FLOW - PANEL 5/12: FUNCTIONS, POWERS, CONSULTATION

Six duties: monitor; inquire; advise development; evaluate; report/recommend; other specified functions.
Clause (8): summons/oath, documents, affidavits, public records, evidentiary commissions, other prescribed matter.
Procedural power != writ, conviction, damages, list amendment or reservation grant.
Clause (9): mandatory consultation on major policy, not concurrence; 338B exception for 342A(3).

ASCII MASTER FLOW - PANEL 6/12: REPORT ACCOUNTABILITY

Union matter: Commission -> President -> both Houses + action memorandum + rejection reasons.
State matter: NCSC/NCST -> Governor -> State Legislature + memorandum.
NCBC difference: Article 338B(7) -> State Government -> State Legislature.
Submission, laying, scrutiny and implementation are separate stages.

ASCII MASTER FLOW - PANEL 7/12: NCSC AND NCST DOMAINS

NCSC: SC equality, untouchability, services, representation, PCR/PoA safeguard monitoring.
NCSC does not register FIRs, prosecute, try or sentence.
NCST 2005 Rules: MFP, resources, livelihood, displacement, land, forests, PESA, shifting cultivation.
NCST monitors/advises; it does not administer Scheduled Areas or finally decide FRA claims.

ASCII MASTER FLOW - PANEL 8/12: NCBC TRANSITION

Indra Sawhney 1992 directed a permanent backward-class body.
NCBC Act 1993: statutory inclusion/over-/under-inclusion adviser with civil-court tools.
102nd Amendment: Article 338B broadened safeguards, complaints, development, reporting and consultation.
Constitutional status enlarged scope and visibility, not binding adjudicatory force.

ASCII MASTER FLOW - PANEL 9/12: LIST SPECIFICATION

Article 341 SC / Article 342 ST: President initially specifies; Parliament later includes/excludes by law.
SC/ST status is State/UT-specific; Governor consultation is not declaration.
Article 342A(1)-(2): Central SEBC List for Central purposes.
Article 342A(3): State/UT own list by law for own purposes; commission advice is not final instrument.

ASCII MASTER FLOW - PANEL 10/12: CASES AND FEDERAL CORRECTION

Jaishri Laxmanrao Patil 2021: majority read original 342A as displacing State identification.
105th Amendment: restored/clarified State/UT own-list power; adjusted 338B(9), 342A and 366(26C).
Davinder Singh 2024: evidence-based SC sub-classification permissible; E.V. Chinnaiah overruled.
Creamy-layer concurrences != unanimous ratio; Jarnail and Janhit remain bounded cross-links.

ASCII MASTER FLOW - PANEL 11/12: DISTINCTIONS AND REFORM

Commissions monitor/advise; ministries implement; police enforce; courts adjudicate.
State commissions complement; NHRC/NCW/NCM/NCPCR are statutory and separately mandated.
Reform: transparent appointments, timely vacancies, regional access, data/case management, tracked responses.
Intersectionality supports referral and joint evidence, not indiscriminate merger.

ASCII MASTER FLOW - PANEL 12/12: TRAPS AND ANSWER SPINE

TRAPS: current five vs historical seven; civil-court tools vs court; consultation vs veto.
TRAPS: Governor route vs NCBC State Government route; list identity vs certificate administration.
ANSWER: define -> Article/amendment -> mechanism -> named evidence -> analysis -> qualification.
VERDICT: constitutional status works through capacity, reason-giving and legislative follow-up.